



SCALES MOUND CUSD #211
FACULTY/STAFF HANDBOOK
2022-2023

“Home of the Hornets”

Scales Mound CUSD #211
Mission Statement



*From the top of Illinois, we are
preparing today's learners for
tomorrow's world by empowering
all to reach their full potential.*

Scales Mound CUSD #211 Beliefs

*We believe our District is the heart of our community
where pride, family, and tradition beat strong;*

*We believe in working together in a safe, healthy environment
demonstrating respect, integrity, and teamwork; and*

*We believe in challenging innovative learners by promoting
creative and critical thinkers.*

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Introduction

Being an educator means dedication to the teaching profession and making the commitment to providing the highest quality of instruction possible. The requirements for effective teaching require on-going training. For questions concerning the contents of this handbook, please consult the administration or refer to Board Policy, The School Code of Illinois, and/or the Professional Agreement between the Scales Mound Education Association and Scales Mound Community Unit District #211 (2016-2019).

This handbook was developed to serve as a resource for helping to answer basic questions about policies and procedures. It is intended to help teachers be more efficient and effective in their daily routine. No teachers' handbook is capable of covering all possible situations. The professionalism of the teacher and his/her commitment to providing a high quality education are the critical components of developing a healthy and safe environment that promotes and encourages learning by students.

I. ABSENCE PROCEDURES

Sick leave, personal days and other leaves of absence will be granted to teachers according to terms provided in the Professional Agreement between Scales Mound Education Association and the Scales Mound Board of Education. In cases of more than three consecutive sick leave absences teachers may be asked to submit a doctor's excuse indicating the cause.

If illness or some emergency arises that will cause you to miss work, a substitute teacher must be contacted. The administration will provide a list of approved substitute teachers from the ROE. It is the responsibility of the teacher to arrange for their substitute. Be sure the substitute is aware of starting time at school and where to locate all of the necessary teaching materials. **Also, please call the school voice mail (815-845-2215) and leave your name and the name of your substitute.** Substitutes must check in at the office when they arrive at school. If necessary, teachers may also call the Principal who will arrange for a substitute for the day. (Dr. Caron – 815-281-2113/Dr. Wiederholt – 815-281-2331)

Please notify school by 2:30 P.M. if you will not return to school the next day. A teacher missing more than three consecutive days may be required to provide a note from a physician verifying illness or incapacity as the cause of the absences. Please fill out the Employee Absence Report upon returning to school.

II. ACCEPTABLE USE OF ELECTRONIC NETWORKS

All use of electronic networks shall be consistent with the District's goal of promoting educational excellence by facilitating resource sharing, innovation, and communication. These procedures do not attempt to state all required or prescribed behavior by users. However, some specific examples are provided. The failure of any user to follow these procedures may result in the loss of privileges, disciplinary action, and/or legal action.

Terms and Conditions

Acceptable Use - Access to the District's electronic network must be:

- For the purpose of education or research,
- Be consistent with the District's educational objectives, or
- For legitimate business use.

Privileges - The use of the District's electronic network is a privilege, not a right, and inappropriate use will result in a cancellation of those privileges. The system administrator or Building Principal will make all decisions regarding whether or not a user has violated these procedures and may deny, revoke, or suspend access at any time. His or her decision is final.

Unacceptable Use - The user is responsible for his/her actions and activities involving the network. Some examples of unacceptable uses are but not limited to:

- a) Using the network for illegal activities, including violation of copyright or other contracts, or transmitting any material in violation of any State or Federal law.
- b) Unauthorized downloading of software, regardless of whether it is copyrighted or been scanned for viruses;
- c) Downloading of copyrighted material for other than personal use;
- d) Using the network for private financial or commercial gain;
- e) Wastefully using resources, such as file space;
- f) Hacking or gaining unauthorized access to files, resources, or entities;
- g) Invading the privacy of individuals, that includes the unauthorized disclosure, dissemination, and use of information about anyone that is of a personal nature including a photograph;
- h) Using another user's account or password;
- i) Posting material authored or created by another without his/her consent;
- j) Posting anonymous messages;
- k) Using the network for commercial or private advertising;
- l) Accessing, submitting, posting, publishing, or displaying any defamatory, inaccurate, abusive, obscene, profane, sexually oriented, threatening, racially offensive, harassing, or illegal material; and using the network while access privileges are suspended or revoked.

Network Etiquette - The user is expected to abide by the generally accepted rules of network etiquette. These include, but are not limited to, the following:

- a) Be polite. Do not become abusive in messages to others.
- b) Use appropriate language. Do not swear, or use vulgarities or any other inappropriate language.
- c) Do not reveal personal information, including the addresses or telephone numbers, of students or colleagues.
- d) Recognize that email is not private. People who operate the system have access to all email.
- e) Messages relating to or in support of illegal activities may be reported to the authorities.
- f) Do not use the network in any way that would disrupt its use by other users.
- g) Consider all communications and information accessible via the network to be private property

No Warranties - The District makes no warranties of any kind, whether expressed or implied, for the service it is providing. The District will not be responsible for any damages the user suffers. This includes loss of data resulting from delays, non-deliveries, missed-deliveries, or service interruptions caused by its negligence or the user's errors or omissions. Use of any information obtained via the Internet is at the user's own risk. The District specifically denies any responsibility for the accuracy or quality of information obtained through its services.

Indemnification - The user agrees to indemnify the School District for any losses, costs, or damages, including reasonable attorney fees, incurred by the District relating to, or arising out of, any violation of these procedures.

Security - Network security is a high priority. If the user can identify a security problem on the Internet, the user must notify the system administrator or Building Principal. Do not demonstrate the problem to other users. Keep your account and password confidential. Do not use another individual's account without written permission from that individual. Attempts to log-on to the Internet as a system administrator will result in cancellation of user privileges. Any user identified as a security risk may be denied access to the network.

Vandalism - Vandalism will result in cancellation of privileges and other disciplinary action. Vandalism is defined as any malicious attempt to harm or destroy data of another user, the Internet, or any other network. This includes, but is not limited to, the uploading or creation of computer viruses.

Telephone Charges - The District assumes no responsibility for any unauthorized charges or fees, including telephone charges, long-distance charges, per-minute surcharges, and/or equipment or line costs.

Copyright Web Publishing Rules - Copyright law and District policy prohibit the re-publishing of text or graphics found on the web or on District websites or file servers without explicit written permission.

- a) For each re-publication (on a website or file server) of a graphic or a text file that was produced externally, there must be a notice at the bottom of the page crediting the original producer and noting how and when permission was granted. If possible, the notice should also include the web address of the original source.
- b) Students and staff engaged in producing web pages must provide the library media specialist with email or hard copy permissions before the web pages are published. Printed evidence of the status of "public domain" documents must be provided.
- c) The absence of a copyright notice may not be interpreted as permission to copy the materials. Only the copyright owner may provide the permission. The manager of the website displaying the material may not be considered a source of permission.
- d) The *fair use* rules governing student reports in classrooms are less stringent and permit limited use of graphics and text.
- e) Student work may only be published if there is written permission from both the parent/guardian and student.

Use of Email - The District's email system, and its constituent software, hardware, and data files, are owned and controlled by the School District. The School District provides email to aid students and staff members in fulfilling their duties and responsibilities, and as an education tool.

- a) The District reserves the right to access and disclose the contents of any account on its system, without prior notice or permission from the account's user. Unauthorized access by any student or staff member to an email account is strictly prohibited.
- b) Each person should use the same degree of care in drafting an email message as would be put into a written memorandum or document. Nothing should be transmitted in an email message that would be inappropriate in a letter or memorandum.
- c) Electronic messages transmitted via the School District's Internet gateway carry with the main identification of the user's Internet *domain*. This domain is a registered name and identifies the author as being with the School District. Great care should be taken, therefore, in the composition of such messages and how such messages might reflect on the name and reputation of the School District. Users will be held personally responsible for the content of any and all email messages transmitted to external recipients.
- d) Any message received from an unknown sender via the Internet should either be immediately deleted or forwarded to the system administrator. Downloading any file attached to any Internet-based message is prohibited unless the user is certain of that message's authenticity and the nature of the file so transmitted.
- e) Use of the School District's email system constitutes consent to these regulations.

Internet Safety

Internet access is limited to only those *acceptable uses* as detailed in these procedures. Internet safety is almost assured if users will not engage in unacceptable *uses*, as detailed in these procedures, and otherwise follow these procedures. Staff members shall supervise students while students are using District Internet access to ensure that the students abide by the *Terms and Conditions* for Internet access contained in these procedures. Each District computer with Internet access has a filtering device that blocks entry to visual depictions that are: (1) obscene, (2) pornographic, or (3) harmful or inappropriate for students, as defined by the Children's Internet Protection Act and as determined by the Superintendent or designee. The system administrator and Building Principals shall monitor student Internet access.

III. ACCIDENTS / ILLNESS-STUDENTS/TEACHERS

If a student has an accident while under your supervision, be sure the following actions are accomplished:

- a) Aid the student first. Use extreme caution before moving the student. If the student is bleeding, use necessary precautions against the transmission of blood-borne pathogens and contact the maintenance staff for the appropriate clean up.
- b) **Call 911, if appropriate.**
- c) Notify the office/administration immediately.
- d) The office will contact the parents.
- e) Fill out an accident report available in the office and in the teachers' workroom.
- f) No student should be released from school without prior notification made to the main office.
- g) Please be alert at all times for areas of our school that could present accident possibilities for both students and staff. Report these areas to the administration or custodial staff immediately.

IV. ACTIVITY ACCOUNT PROCEDURES

All teachers or sponsors must submit requisitions for expenditures of activity funds. Payment vouchers will be approved only after requisitions have been submitted and approved by the Principal or Superintendent. Activity Fund Disbursement Form (check sheet) should be submitted with any bill to the Administration for approval. The following information must appear on all payment orders:

- a) Total amount being spent.
- b) The account the money will be taken from.
- c) The reason for the expenditure.
- d) Signature of the sponsor advisor of the activity.
- e) The signature of the appropriate student officer (if applicable).
- f) Mailing address of the company.

All checks will be signed and issued through the office. Checks will not be issued until payment vouchers are approved and submitted to the Bookkeeper. Depending on the amount and nature of the payment, some may not be paid until they are approved by the Board of Education.

All deposits will be submitted through the main office using the Activity Fund Deposit form. The following procedure should be followed with the depositing of all money:

- a) Money must be placed in a cash box or envelope.
- b) The account the money should be credited to should be clearly noted on the Activity Fund Deposit Form.
- c) The sponsor and student treasurer will count the deposit and verify the amount on the appropriate form.
- d) All money will be re-counted in the office.
- e) Any large deposits should be submitted to the main office as soon as possible
- f) A copy of the receipt slip with any corrections will be put in the sponsor's mailbox.
- g) The original receipt slip will be filed in the office.
- h) Payment vouchers, receipt slips, and cash boxes can be obtained in the main office.

The faculty sponsor should purchase all supplies and materials. Students are not to be allowed to charge or purchase supplies. Please note that any class or organization that requires a cash box will need to provide at least a 24-hour notice to receive the cash box.

V. ADMINISTERING MEDICINE TO STUDENTS

Teachers and other non-administrative school employees, except certified school nurses, shall not be required to administer medication to students. Parent(s)/guardian(s) are responsible for administering medication to their children. Administering medication during school hours or during school-related activities is discouraged unless it is necessary for the critical health and well being of the student. Parent(s)/guardian(s) may authorize their child to self-administer a medication according to the District's procedures for student self-administration of medication. Nothing in this policy shall prohibit any school employee from providing emergency assistance to students, including administering medication.

Students recovering from temporary illness, or students on permanent medication who require medication during the school day, may bring medication to school following these guidelines:

- a) A written statement from the student's physician indicating the necessity for the medication, proper dosage, time of administration, and duration of the prescribed medication. The telephone number of the physician and the name and telephone number of the pharmacy shall be indicated.
- b) A written request and permission from the parent to administer the medication.
- c) Medication shall be brought to school in appropriately labeled container(s). The name of the student, the name and phone number of the physician and pharmacy shall be indicated on the container(s). The Superintendent's designee shall administer medication.

Should a student require a continuing program of medication and it can be demonstrated that the student is of responsible age; arrangements may be made for self-administration of certain medicine. This procedure shall be allowed after the following conditions have been met:

- a) A written release of liability from the parent/guardian.
- b) Written permission from the Superintendent or his designee.
- c) Written permission from the doctor.
- d) All medicines shall be stored in an appropriate, locked cabinet.
- e) In all cases the school retains the discretion to reject a request for administering medicine.

VI. AED NOTIFICATION

Automated External Defibrillators (AED) is located outside of the gym and fitness center. All staff members will receive the opportunity to be trained in the AED use. The Physical Fitness Facility Medical Emergency Preparedness Act and the Local Governmental Employees Tort Immunity Act protect staff members from liability. Please direct questions or concerns to the Superintendent.

VII. ANIMALS IN THE CLASSROOM

Animals may be brought into the classroom for educational purposes only, and only then with the permission of the Principal. Such animals are to be kept in the classroom for the time necessary for their study only. It is the responsibility of the teacher to determine if there are any students or staff who may have allergic conditions who will be affected by the presence of animals in the classroom or building. The teacher shall designate who shall be permitted to handle animals brought into the classroom. Animals in the classroom shall be treated in a humane manner at all times. If animals are to be kept in the classroom on days when classes are not in session arrangements shall be made for their care.

Livings animals may not be used in an experiment for the purpose of demonstration in a field of study in the classroom nor shall they be killed in the classroom for such purpose. The dissection of dead animals or parts of dead animals shall be allowed in the classroom in the presence of students only when the dissection exercise contributes to or is a part of an illustration of pertinent study materials.

VIII. ANNOUNCEMENTS

Announcements should be submitted to the main office via e-mail by 3:00 p.m. on the day before it is to be read. (Announcement sheets are available in the office.) For extracurricular activities that end after 3:00 PM, coaches and sponsors may submit announcements by 7:30 AM the day following those contests. The day's announcements will be read over the intercom at 8:00 a.m. and emailed to all staff. Daily announcements should then be posted in a visible location in each classroom. In the event of an emergency dismissal, send any important announcements immediately to the office.

IX. ASBESTOS INFORMATION

The Asbestos Management Plan is available for inspection in the office of the Facilities Manager located at 210 South Main Street. Federal and State law require the building to be re-inspected every three years. Details are available in the Asbestos Management Plan and may be obtained by contacting the Superintendent.

X. ASSEMBLIES

Assemblies should reflect the mission and beliefs of Scales Mound CUSD #211. Teachers are expected to attend all assemblies and escort all students in their charge to the assembly.

XI. ATTENDANCE

Classroom teachers are required to maintain attendance on the school student management system and in their grade book. Class attendance will be entered in the grade book according to the following code:

- a) A= Absence (excused)
- b) U= Absence (unexcused= zero for day)
- c) TU= Tardy unexcused
- d) TE= Tardy excused
- e) S= School generated absence (No loss of credit – Field trips, student conference, suspension, etc. students must have all work completed upon their return to school.)
- f) Empty Square= Student present

Classroom teachers are responsible for posting the attendance and student lunch counts in the student management system on a daily basis.

Attendance should be taken at the beginning of each period. Please report any attendance discrepancies to the office immediately.

Tardiness

- a) Students tardy to school in the morning must report to the office to obtain an admit slip to class.
- b) Students in grades 6-12 who are tardy to class should have a pass from their previous teacher if the tardy is to be excused. If the student does not have a pass the tardy will be unexcused.

Unexcused Absences

If the absence is not phoned in on the day of the absence, the student is required to bring in a signed note from a parent/guardian to school on the next day of student attendance to excuse the absence. Daylong-unexcused absences will result in five after school detentions.

Makeup/Incomplete Work

Students who have an excused absence have the opportunity to make up work. It is the responsibility of the student to contact the teacher(s) involved to determine make up assignments and establish times for daily and test makeup.

- a) A student is given two (2) days for each excused absence (up to three days) to make up work.
- b) For excused absences longer than three days, the teacher may develop a contract for make up work with due dates.
- c) All make up and long-term projects should be completed within one (1) week of the end of the grading period unless prior administrative approval has been granted.
- d) It is the students responsibility to obtain assignments and make up work from their teachers if they have an excused tardy to school. This work is due the next attendance day or on the expected due date.
- e) A teacher reserves the right to require a student to make up any work after school and may schedule that time with the student or parent.
- f) Students may be required to serve up to a half hour (1/2) study period after school with a teacher for whom an assignment is missing.
- g) Teachers have the professional discretion over the amount of credit given for afterschool make up assignments.

Release of students during school hours

Teachers may not release students from school at other than the regular dismissal times without prior approval of the administration. No students will be released from school to any person other than the custodial parent/guardian without the written or oral permission of the custodial parent/guardian. The Superintendent or his designee may make exceptions when verification shows the release to be justifiable.

XII. BACKGROUND INVESTIGATION

Each applicant for employment, both certified and non-certified, as a condition for employment within the District, shall authorize in writing, a background investigation to determine if he or she has been convicted of certain criminal or drug offenses. The Superintendent or the Superintendent's designee shall obtain from the applicant his or her legal name, date of birth, and social security number for submission to the State Police on forms prescribed by the Department. The Board of Education shall not knowingly employ a person for whom a criminal background investigation has not been initiated. The Board of Education shall not knowingly employ a person who has been convicted for committing or attempting to commit any one or more of the following offenses:

- a) The Criminal Code of 1961, Sections 11-6, 11-9, 11-14, 11-15.1, 11-16, 11-17, 11-18, 11-19, 11-19.1, 11-19.2, 11-20, 11-20.1, 11-21, 12-13, 12-14, 12-15, and 12-16.
- b) Cannabis Control Act, except Section 704(a), 704(b), and 705 (a) of the act.
- c) Illinois Controlled Substances Act, Sections 110 et seq.
- d) Any offense committed or attempted in any other state or against the laws of the United States, which if committed or attempted in this state, would have been punishable as one or more of the foregoing offenses.

A record of conviction resulting from the background check shall be held as confidential information in the employees personnel file.

XIII. CALENDAR

Scales Mound CUSD #211 utilizes Google Calendar for all activities and events. Teachers should consult Google Calendar for all extracurricular events and activities when planning activities. All calendar events should be sent to the office to be added to the main school calendar.

XIV. CHRONIC COMMUNICABLE DISEASES

An employee who has a chronic communicable disease, or is a carrier of a communicable disease, shall be permitted to retain his/her position whenever, through reasonable accommodation, there is not

significant risk of transmission of the disease to others. An employee who cannot retain his/her position shall remain subject to the Board's employment policies, including but not limited to sick leave, physical examinations, or temporary and permanent disability termination. If a dispute arises as to the ability of an employee to remain in his/her position, such employee may be temporarily excluded from work or transferred to another position by the Superintendent or his/her designee pending determination of the employee's continued employment status. During any period of temporary exclusion, the employee shall be entitled to utilize sick leave and other related benefits. In the event it is determined that the employee could have been at work during the temporary exclusion, no deduction from sick leave shall be made for such excluded time. An employee who has a chronic communicable disease, or who is a carrier of a communicable disease, or who is reasonably suspected of having a chronic communicable disease may be required from time to time to undergo an examination by a licensed physician. The Board shall pay the expenses of any required medical examination.

XV. CLASSROOM MANAGEMENT PROCEDURES

Teachers are expected to enforce school rules fairly and consistently. Responsibility for classroom management rests with the teacher. Failure to do so will cause the administration to take action to correct teacher performance. Actions could include a verbal warning, written reprimand; notice of remediation, or in extreme cases removal from class.

Students should be under the constant supervision of a teacher or a staff member. ***It is not acceptable to leave students unattended unless there is an emergency at hand.*** If there is a need to leave the class unattended, the teacher must see to it that the students are under the direct supervision of another staff member.

At the start of each semester, teachers will explain to students the expectations for success, proper conduct, rewards for meeting expectations, and consequences for failing to meet expectations. Examples of rewards could include bonus points earned, independent study time, progress reports sent home, public recognition of successful effort, and prizes.

Please review the discipline plan in the parent/student handbook. This may be of assistance if it becomes necessary to write a student referral. Problems such as talking, passing notes (assuming the content is not obscene) and other minor problems should not be immediately referred to the office. The teacher should try other intervention methods before a disciplinary notice is written.

XVI. CONFIDENTIALITY

District employees are responsible for maintaining the integrity and security of all internal information and privacy of confidential records, including all student records, personnel records, and material disclosed in closed session of a Board of Education meeting. Internal information is any information, oral or recorded in electronic or paper format, maintained by the District or used by the District or its employees.

XVII. CONDUCT STANDARDS

Professional and ethical behavior is expected of all District staff members. The standards listed below serve as a notice of expected conduct. The standards are intended to protect the health, safety, and general welfare of students and employees, ensure the community a degree of accountability within the School District, and define misconduct justifying disciplinary action. The listed standards are not a complete list of expectations, and depending on the factual context, an employee may be disciplined for conduct that is not specifically listed. The conduct standards apply to all District employees to the extent they do not conflict with an applicable collective bargaining agreement; in the event of a conflict, the provision is severable and the applicable bargaining agreement will control.

All school employees shall:

- a) Exhibit positive examples of preparedness, punctuality, attendance, self-control, language, and appearance.
- b) Exemplify honesty and integrity. Violations of this standard include, but are not limited to, falsifying, misrepresenting, omitting, or erroneously reporting the professional qualifications of oneself or another individual or information submitted in connection with job duties or during the course of an official inquiry/investigation.
- c) Maintain a professional relationship with all students, both in and outside the school and attend all in-service trainings on educator ethics, teacher-student conduct, and school, employee-student conduct for all personnel (105 ILCS 5/10-22.39). Violations of this standard, include but are not limited to: committing any act of child abuse or cruelty to children; engaging in harassing behavior; soliciting, encouraging, or consummating an inappropriate written, verbal, or physical relationship with a student; and furnishing tobacco, alcohol, or illegal/unauthorized substance to any student or allowing a student under his or her supervision to consume alcohol or an illegal/unauthorized substance.
- d) Maintain a safe and healthy environment, free from harassment, intimidation, bullying, substance abuse, and violence, and free from bias and discrimination. Violations of this standard include, but are not limited to: using alcohol or illegal or unauthorized substances when on school property or at school-sponsored events, or whenever engaged in job responsibilities; failing to report suspected cases of child abuse or neglect, or of gender harassment; and tolerating student-on-student bullying or harassment.
- e) Honor the public trusts when entrusted with public funds and property by acting with a high level of honesty, accuracy, and responsibility. Violations of this standard include, but are not limited to: misusing public or school-related funds; failing to account for funds collected from students or parents/guardians; submitting fraudulent requests for reimbursement of expenses or for pay; co-mingling District or school funds with personal funds or checking accounts; and using school property without the approval of the supervising school official.
- f) Maintain integrity with students, colleagues, parents/guardians, community members, and businesses concerning business dealings and when accepting gifts and favors. Violations of this standard include but are not limited to, soliciting students or parents/guardians to purchase supplies or services from the employee or to participate in activities that financially benefit the employee without fully disclosing the interest.
- g) Respect the confidentiality of student and personnel records, standardized test material, and other information covered by confidential agreements. Violations of this standard include but are not limited to: disclosing confidential information concerning student academic and disciplinary records, health and medical information, family status and/or income, and assessment/testing results, unless disclosure is required or permitted by law; and disclosing confidential information restricted by State or federal law.
- h) Comply with all State and federal laws and rules regulating public schools and School Board policies, including but not limited to: 2:105 (Ethics and Gift Ban), 5:10 (Equal Employment Opportunity and Minority Recruitment), 5:20 (Workplace Harassment Prohibited), 5:30 (Hiring Process and Criteria), 5:50 (Drug- and Alcohol-Free Workplace), 5:60 (Expenses), 5:90 (Abused and Neglected Child Reporting), 5:100 (Staff Development Program), 5:120 (Ethics and Conduct), 5:130 (Responsibilities Concerning Internal Information), 5:140 (Solicitations By or From Staff), 5:170 (Copyright), 5:180 (Temporary Illness or Temporary Incapacity), 5:200 (Terms and Conditions of Employment and Dismissal), 5:230 (Maintaining Student Discipline), 5:280 (Duties and Qualifications), 5:290 (Employment Termination and Suspensions), 6:235 (Access to Electronic Networks), 7:20 (Harassment of Students Prohibited), 7:190 (Student Discipline), 7:340 (Student Records), and 8:30 (Visitors to and Conduct on School Property). Conviction of any employment disqualifying criminal offense listed in The School Code will result in dismissal.

Before disciplinary action is taken, the supervisor will conduct a fair and objective investigation to determine whether the employee violated a standard or other work rule and the extent that any violation impacts educational or operational activities, effectiveness, or efficiency. Discipline must be appropriate and reasonably related to the seriousness of the misconduct and the employee's record. Any applicable provision in a contract, bargaining agreement, or State law will control the disciplinary process.

XVIII. *CONTROVERSIAL ISSUES IN THE CLASSROOM*

Discussion of controversial issues provides stimulation of intellectual curiosity, and this is an integral part of the normal classroom. Free inquiry in democratic society requires that controversial issues arising in a normal classroom situation be handled as a regular aspect of instruction and learning in such a way as to not inhibit the dignity of the teacher or the student. Neither shall such discussion prevent open access to information on the part of either teacher or the community. Controversial issues must be handled so there is a free exchange of ideas and in a manner so that all ideas of such issues are explored. If you have concerns about subject matter that include topics such as sex, religions, or substance abuse, discuss these matters with the administration.

Any comprehensive sex education course requires that students' parents/guardians receive at least two (2) weeks written notice prior to the students' participation. For grades K-8 it is necessary to notify the administration and the parent/guardian no later than five (5) days prior to the first class presentation for the discussion of issues related to sexual abuse and abduction.

All school sponsored presentations and discussions of controversial or sensitive topics in the instructional program, including those made by guest speakers, should be:

- Age appropriate
- Consistent with the curriculum
- informative and present a balanced view
- respectful of the rights and opinions of others
- not tolerant of profanity or slander

The District specifically reserves the right to stop any school-sponsored activity that it determines violates these criteria, is harmful to students, or violates the law.

XIX. *COPYRIGHT REGULATIONS*

Materials that are developed during the course of any employee's regular working activities, summer workshops, or special curricular projects become the property of the District. Any decision concerning copyrights shall be the prerogative of the Board of Education. When textbooks or other instructional materials are developed by the staff members outside the contractual relationship with the District and at no expense to the District, the District relinquishes any claim to ownership or copyright.

XX. *DETENTIONS*

Detentions may be assigned to students exhibiting inappropriate behavior (See "Classroom Management"). Students in grades K-3 may be given detention assignments that will be served with their regular classroom teacher. Advance notice to parents must be given through personal contact before the detention is served in Grades K-3. Teachers should write a disciplinary notice-describing students behavior, may be assigned detentions or other penalties by administrative action.

At the start of the school year, a schedule will be developed for all fourth (4th) through twelfth (12th) grade teachers. Detentions are generally served in the classroom of the supervising teacher. No talking is permitted; students may not read or get out of their seat. Teacher should verify that the students understand the detention rules each day.

Detentions are served from 3:05 until 3:30 P.M. A discipline referral should be sent to the office for any student who fails to serve a detention. This should be done as soon as possible but no later than the beginning of the next regular school day.

XXI. DISCIPLINE

All staff is responsible for the discipline of all students of the District, not just the students in your class or grade. Teachers and other certified educational employees shall maintain discipline in the schools. In all matters relating to the discipline and conduct of the students in the schools, the teachers and other certified educational employees stand in the relation of parents/guardian to the students. This relationship shall extend to all activities connected with the school program and may be exercised at any time for the safety and supervision of the students in the absence of their parents or guardians. All teachers and certified educational employees are expected to exercise supervisory roles during those times when students are present in the school facility or participating in a school function.

Teacher action, attitude, and ability establish the climate for the classroom environment that is conducive to learning. The atmosphere must be such that students can concentrate on the topic being learned. Activities must be conducted in an orderly manner. The teacher's role as instructor and disciplinarian are not mutually exclusive; rather, good instruction often alleviates many discipline problems.

Staff shall adhere to the following disciplinary guidelines:

- a) Individual student discussion and counseling;
- b) Student involvement in defining acceptable standards of behavior;
- c) Parent/guardian involvement in cases where a student repeatedly exhibits lack of responsibility or self-discipline;
- d) Denial of privileges;
- e) Removal from the classroom;
- f) Detention;
- g) Suspension (in-school and out-of-school) as determined by the administration and in compliance School Code 105 ILCS 5/10-22.6;
- h) Expulsion as determined by School Code 105 ILCS 5/10-22.6 and the Board of Education.

A student whose behavior is so disruptive as to interfere with classroom order, instruction, or the participation of fellow students in the learning process shall be subject to removal by the teacher from the classroom. The removal of the student from the classroom shall be in accordance with the standards and procedures established and maintained by the District that provides due process to the students. Teachers and other certified educational employees may use reasonable force as needed to maintain safety for themselves, other students, staff members, or other persons. Reasonable force as needed may be used as it is deemed necessary to protect against property damage.

Referral Forms

If at some point, it is necessary to refer a student to the office, the teacher will fill out a "Disciplinary Notice" that will include the nature of the infraction and/or recommended disciplinary action taken. The referring teacher will receive a copy of the disciplinary notice as soon as the investigation has concluded.

Office referral may result in one or more of the following:

- a) Discussion of the incident with an administrator
- b) Verbal warning to the student
- c) Temporary removal from class
- d) Verbal or written notification to the parents/guardians
- e) Detention(s) assignment
- f) Suspension in compliance with School Code
- g) Permanent removal from class
- h) Recommendation for expulsion

XXII. DOORS AND WINDOWS

All classrooms should be closed and locked when staff is out of the room. At the end of the school day the last teacher using a room is responsible for making sure windows are closed and locked and lights

are turned off.

XXIII. DRUG AND ALCOHOL FREE WORKPLACE

All District workplaces are drug and alcohol-free workplaces. All employees shall be prohibited from:

- a) Unlawful manufacture, dispensing, distribution, possession, use, or being under the influence of a controlled substance while on District premises or while performing work for the District.
- b) Distribution, consumption, use, possession, or being under the influence of alcohol while on District premises or while performing work for the District.

For purposes of this policy a controlled substance is one that is:

- a) Not legally obtainable;
- b) Being used in a manner different than prescribed;
- c) Legally obtainable, but has not been legally obtained; or
- d) Referenced in federal or State controlled substance acts.

As a condition of employment, each employee shall:

- a) Abide by the terms of the District policy (5:50) respecting a drug and alcohol-free workplace; and
- b) Notify his or her supervisor of his or her conviction under any criminal drug statute for a violation occurring on the District premises or while performing work for the District, no later than five calendar days after such a conviction.

Violation of Drug or Alcohol-Free Workplace Policy

An employee who violates this policy may be subject to disciplinary action, including termination. Alternatively, the Board may require an employee to successfully complete an appropriate drug or alcohol-abuse, employee-assistance rehabilitation program.

The Board of Education shall take disciplinary action with respect to an employee convicted of a drug offense in the workplace within 30 days after receiving notice of the conviction.

Should District employees be engaged in the performance of work under a federal contract or grant, or under a State contract or grant of \$5,000 or more, the Superintendent shall notify the appropriate State or federal agency from which the District receives contract or grant monies of the employee's conviction within 10 days after receiving notice of the conviction.

XXIV. ETHICS BAN

Board policy 2:104, Ethics and Gift Ban, applies to all District employees. Students shall not be used in any manner for promoting a political candidate or issue.

Gifts to Staff Members

Except as permitted by Board policy 2:105, Ethics and Gift Ban, no Board member or employee, and no spouse of or immediate family member living with any Board member or employee shall intentionally solicit or accept any "gift" from any "prohibited source," as those terms are defined in policy, or that is otherwise prohibited by law or policy. Annually staff members will receive Board policy 2:105, which defines the above statements.

Students, parents and others shall be discouraged from the routine presentation of gifts to District employees. Letters of appreciation to staff members shall be welcome always. When a student feels a spontaneous desire to present a gift to a staff member, it should not be elaborate or unduly expensive. Simple remembrances expressive of affection or gratitude shall not be regarded as contrary to the spirit of this policy.

XXV. ELIGIBILITY FOR 6-12 GRADE STUDENTS

All grades 6-12 teachers are required to have grades up-to-date through Thursday of the previous week in their electronic grade books by 8:00 AM on the first day of the school week. (Typically Monday if there is not a holiday.) Any online or outside of the district courses also need to be submitted on the first day of the workweek. A student receives a one-time probation (warning) for the first ineligibility. Thereafter, the grade is cumulative for the remainder of the semester for high school students, or quarter for junior high school students. Students must be passing in all subjects to be eligible for co-curricular activities.

XXVI. EMAIL RETENTION

Email, including attachments, that are sent or received by the District or District employees may be, depending on their content, subject to disclosure under the Freedom of Information Act and/or discovery litigation as evidence in support of a claim. Employees must use the same standards of judgment and ethics with emails as they do with other forms of school business communication. Accordingly, employees have the same responsibility for email messages as they do with other communication and must distinguish between record and non-record messages. This allows for proper storage of emails. However, no District record, no matter its form, may be destroyed if it is subject to litigation.

Email messages are non-record messages if they do not evidence the District's organization, function, policies, procedures, or activities; or contain informational data appropriate for preservation. These are generally informal or preliminary drafts, notes, or memos that do not contain official action. Examples are:

- a) Personal correspondence
- b) Notices concerning meetings, workshops, etc.
- c) Publications or promotional materials from vendors that are available to everyone
- d) Informational correspondence about school activities
- e) Draft materials

Non-record emails should be deleted as soon as their purpose has been fulfilled.

Email messages are official record messages if they are evidence of the District's organization, function, policies, procedures, or activities. Examples include:

- a) Policy documents
- b) Correspondence from individuals, companies, or organizations requesting information about the District's policies or practices
- c) Communication about a student or students
- d) Correspondence dealing with significant aspects of the District's administration, including messages containing information about policies, programs, fiscal matters, personnel matters, and contracts.

XXVII. EMERGENCY PROCEDURES

Every classroom must have exit procedures posted in a prominent location near the door. Staff should notify administration if they do not have a fire exit escape plan or tornado shelter plan in the classroom

All staff members should have a copy of the Districts' Crisis Management Plan that contains plans and procedures for a number of emergency situations. Review this Plan annually and keep it readily available in your classroom and in your substitute file.

XXVIII. END OF THE YEAR CHECKOUT PROCEDURES

Before a teacher departs for summer vacation at the end of the school year, an official checkout needs to

be completed. The administration will provide each staff member with specific information that will need to be completed at checkout.

XXIX. *EQUAL EMPLOYMENT*

Equal educational and extracurricular opportunities shall be available for all students and staff without regard to color, race, nationality, religion, sex, sexual orientation, ancestry, age, physical or mental disability, gender identity, status of being homeless, immigration status, order of protection status, actual or potential marital or parental status, including pregnancy. Further the district will not knowingly enter into agreements with any entity or any individual that discriminates against students or staff on the basis of sex or any other protected status, except that the District remains viewpoint neutral when granting access to school facilities under Board policy 8:20, Community Use of School Facilities. Persons who believe they have not received equal employment opportunities should report their claims to the Nondiscrimination Coordinator and/or a Complaint Manager for the Uniform Grievance Policy. These individuals are listed below. Initiating a complaint shall not adversely affect the complainant's terms or conditions of employment. No person will be dismissed from employment or denied employment by the District because of his or her, color, race, nationality, religion, sex, sexual orientation, ancestry, age, physical or mental disability, gender identity, status of being homeless, immigration status, order of protection status, actual or potential marital or parental status, including pregnancy or unfavorable military discharge except where any of these conditions is a bona fide occupational qualification.

COMPLAINT MANAGER:

Dr. Marybeth DeLaMar, Superintendent
Scales Mound School
210 Main St.
Scales Mound, IL 61075

XXX. *EQUIPMENT*

The staff may not move or borrow any equipment from the school without obtaining administrative authorization. Forms are available in the office.

XXXI. *EVALUATION OF TEACHERS*

Teachers will be observed formally and informally in accordance with the approved Teacher Performance Evaluation Instrument approved by the District Joint Committee and Board of Education.

XXXII. *EXAM EXEMPTIONS - HIGH SCHOOL*

All students will be expected to take semester exams. At the end of the second semester, seniors who have earned a grade of 'C' or better in their classes may be exempt from taking final examinations.

XXXIII. *EXTRA DUTY ASSIGNMENTS*

A sign up list for all events, which require faculty supervision, will be circulated to the teachers. After the faculty has had time to sign up for specific activities, assignments will be made for those activities that were not filled. Extra duty assignments will have paid stipends. The Athletic Director will make a list of these assignments at the beginning of the school year.

When working door duty at games, there are a few guidelines to enforce:

- a) Spectators may not cross the gym floor.
- b) Spectators should enter the gym in a manner that does not disrupt the game being played or in a manner that may cause someone to be injured.
- c) Assist in hallway supervision between games and at halftime.
- d) Remind unruly spectators that they could be ejected for unacceptable behavior.

- e) Students who are disruptive, cause a delay in the game, or are noncompliant with staff or officials, should be immediately reported to the administration, Athletic Director, or supervisor in charge of the event.

If there is a problem fulfilling your scheduled door duty, contact the Athletic Director in advance of the game.

XXXIV. FAIR LABOR STANDARDS ACT

All employees are advised to thoroughly review Board Policy 5:35, General Personnel, and Administrative Procedure 5:35-AP3, Compensable Work Time for Non-Exempt Employees Under the FLSA, concerning the Fair Labor Standards Act. This policy and procedure will be provided to staff members annually.

XXXV. FAMILY MEDICAL LEAVE

The District's Family Medical Leave Policy is defined in Board of Education Policy 5:185. A copy of this policy will be provided to all employees annually.

XXXVI. FIELD TRIPS

All field trips must be arranged with the administration well in advance of the date of the trip. The trip will be considered on its educational merit. The students' parents must sign the field trip waiver at registration or a permission slips before students can go on a school-sponsored trip.

Trips over 50 miles away from school require advance approval by the Board of Education at a regularly scheduled meeting.

If the trip requires the student to miss other classes during the day, the sponsor should provide a comprehensive list of the students who will be attending the trip to the office secretary and to the teachers affected by the student absences. Students who attend field trips must have a completed field trip permission slip turned in before the trip. Teachers should limit the number of field trips to two per year and are required to post the field trip on the school calendar at least three weeks before the date of the trip.

XXXVII. FUND RAISING / CASH BOXES

All fund raising activities must meet Board policy requirements and have administrative and/or Board of Education approval prior to implementation. The fundraising practice for each grade level may vary so it is important that the administration be aware of any fund raising activities.

XXXVIII. GRADES

The Board of Education has adopted a quarter grading period for our students. In each semester there are two quarter grading periods. The semester grade, which is the grade placed on the students' permanent record, may be an average of the two-quarter grades, the semester test grade, and grades from other major requirements of the course such as term papers, projects, and reports.

Each teacher will develop a grading plan. This grading plan should include the criteria used to determine the grade, indications of special weighting to particular assignments (examples- if test scores count for more than daily scores), how the quarter and semester scores are determined, and the weighting of the semester exam or project. Semester exams or projects should count for between 10% and 20% of a student's total grade. Staff should provide enough opportunities to effectively evaluate the student's performance.

- a) There should be a minimum of five grades or scores per quarter.
- b) There cannot be two-ineligibility cycle weeks without a grade being entered.
- c) Periodically you must inform your students of your grading method.

- d) With each new class and at the beginning of each new period explain exactly how you determine the student's grades.

Upon request, and at the teachers' convenience, a student should be informed of his/her grade. Grades entered on the report card should be based on classroom performance, effort, homework, quiz scores, formal examinations, major projects and extra credit.

XXXIX. GRADING SYSTEM

Grade books may be checked periodically by the administration. At no time are the students allowed access to the teacher's grade book. Only the teacher may record attendance and grades in their grade book or in the student management program. A record of the students grades must be turned in to the office at the end of the school year as described in the end-of-the-year checkout procedures.

An administrator can only change a final grade after consultation with the teacher who has given the student that grade.

The school year is divided into two semesters with two nine-week progress-reporting periods. The teacher will inform each student of the grading system used for each course.

Report cards will be issued to students four times a year at the conclusion of each grading period. Parents and students share the responsibility of keeping informed about the student's academic progress.

Incomplete grades must be made up within one week after the end of the grading period. Failure to do so will result in a failing grade and no credit for the work not completed during the prior nine weeks. Extensions on the one-week maximum may be given at the administrative level if there are unusual circumstances.

Grading Scales for Courses and Assignments:

KINDERGARTEN THROUGH GRADE THREE

"Excellent"
 "Satisfactory"
 "Needs Improvement"
 "Unsatisfactory"

FOURTH AND FIFTH GRADE

A = 100-90	Excellent
B = 89-80	Above Average
C = 79-70	Average
D = 69-60	Below Average
F = 59 or below	Unsatisfactory

GRADES SIXTH THROUGH TWELVTH

A = 100-92	Excellent
B = 91-83	Above Average
C = 82-74	Average
D = 73-65	Below Average
F = 64 or below	Unsatisfactory

GRADE POINT CALCULATION (Grades 6-12)

<i>Letter Grade</i>	<i>Quality of Work</i>	<i>Grade Point</i>
A	Superior	4.00
A-		3.67
B+		3.33
B		3.00
B-		2.67
C+		2.33
C	Average	2.00
C-		1.67
D+		1.33

D		1.00
D-		0.67
F	Failing	0.00

I - Incomplete work (*Becomes an "F" if the assignment/test is not completed within one week of the end of the semester, unless indicated otherwise by the administration.*)

M – Medical (No credit earned and work does not need to be completed with administrative approval.)

Semester examination may count from 10% to 20% of the final grade. Each quarter grade counts from 40% to 45% of the final semester grade.

XL. GRADE BOOKS

Grade books are an important part of your teaching responsibilities, and state law legally requires grades to be recorded electronically via the student management system or manually entered into a teacher grade book. They should be filled out completely, neatly, and according to professional standards.

Each manually entered grade book must contain:

- a) The teacher's name on front cover
- b) Courses contained in the grade book
- c) Record the textbook number of every text issued to a student.
- d) Student's official name
- e) Student's grade level
- f) Student attendance and tardiness
- g) All graded assignments for quarter/semester grades
- h) Assignments should be labeled with the date entered or assigned

Teachers should take their grade books with them when they exit the room during fire or disaster drills.

XLI. HALLWAY AND ROOM SUPERVISION

Whenever in the building, students should always be under staff supervision. Teachers should never leave a class unsupervised for any reason and should not leave a classroom while it is in session unless it is for an emergency. In such cases, notify the office so that we can provide coverage.

Teachers are to be at their teaching stations between 7:45 A.M. - 8:00 A.M. every day and expected to supervise hallways between periods.

Many problems are avoided because teachers are "visible" when students are in the building. If you observe people in the building who do not have proper authorization, please offer them assistance and inquire about their reason for being in the building. If you are not satisfied with the explanation, please contact the office immediately.

Teachers with scheduled lunch supervision should be prompt for their assignment and circulate to all areas where students congregate. Supervision time should not be used for completing planning activities (i.e. making phone calls, grading papers, et. al.)

XLII. HALL PASSES

Forms for hall passes are found in the office. The use of hall passes should be kept to a minimum. Permanent hall passes will be accepted if a specific destination and time is noted. The instructor must fill out all passes. Staff is required to keep a log of all students leaving the classroom for any reason.

XLIII. HARASSMENT

School Board policy 5:20, Workplace harassment Prohibited, expects the workplace to be productive, respectful and free from unlawful harassment. District employees shall not engage in harassment or abusive conduct on the basis of an individual's race, religion, national origin, sex, sexual orientation, age, citizenship status, disability or other protective status identified in Board policy 5:10, Equal Employment Opportunity and Minority Recruitment. Harassment of students or staff, including but not limited to, sexual harassment, is prohibited by Board policy 7:20, Harassment of Students Prohibited.

The administration will provide the staff with policies regarding the prohibition of harassment annually. Employees should report claims of harassment to the Nondiscrimination Coordinator and/or use the Board policy 2:260, Uniform Grievance Procedure. Below are the names of the complaint managers for to report any instances of harassment:

Complaint Managers:

Marybeth DeLaMar
Scales Mound C.U.D. #211
210 Main St.
Scales Mound, IL 61075
(815) 845-2215

Hannah Wiegel
Scales Mound C.U.D. #211
210 Main St.
Scales Mound, IL 61075
(815) 845-2215

Any District employee who is determined, after an investigation, to have engaged in harassment will be subject to disciplinary action up to and including discharge. Any student of the District who is determined, after an investigation, to have engaged in harassment will be subject to disciplinary action, including but not limited to, suspension and expulsion consistent with the discipline policy. Any person making a knowingly false accusation regarding sexual harassment will likewise be subject to disciplinary action up to and including discharge, with regard to employees, or suspension and expulsion, with regard to students. **All reports of harassment must be treated seriously and attended to quickly.**

XLIV. HEALTH INSURANCE NOTIFICATION

The initial and ongoing measurement cycle set by the Scales Mound School District Board of Education, in compliance with the Patient Protection and Affordable Care Act, is established as follows. The initial and ongoing Measurement Period is set at 12 months in duration. Following the measurement period a 1-month Administrative Period will be used to make eligibility determinations. Once eligibility is granted the newly eligible employee will retain access to the Scales Mound Health Plan for a period of time not less than the district established Measurement Period duration. This eligibility period is referred to under PPACA as the Stability Period.

Eligibility for access to the Scales Mound School District medical insurance plan to previously non-eligible employees will be granted if during the Board of Education established measurement period said employee exceeds 30 hours of creditable work hours per week, on average, as determined by their individual W-2 reported hours. Newly eligible employees will receive a Board of Education contribution toward the cost of health insurance consistent with the terms of the contract with their respective bargaining unit. The medical health plan eligibility provisions here in will be revised subject to further regulatory guidance released in support of compliance with the Patient Protection and Affordable Care Act.

XLV. HOMEWORK

Some learning experiences are certainly enhanced by extending class work through the assignment of work to be done outside regular class times. The type, frequency and quantity of homework should be based on the needs of the individual students as determined by the professional judgment of the teacher. Homework should be an application or adaptation of a classroom experience and should not be an assignment for disciplinary purposes.

The teacher should also consider the special events when making decisions about homework.

XLVI. INSTITUTE DAYS

Institute days are regular workdays. Teachers are expected to report on time for such programs and to attend all sessions.

XLVII. INSUFFICIENT FUND CHECKS

The following will occur whenever any individual writes a check to the District that is not honored upon presentation to the respective bank or other depository institution for any reason:

- a) The Superintendent or a designee will contact the individual by telephone as soon as the check is returned to the District. The individual may be asked to pay the returned check and the \$25.00 returned check fee.
- b) If the amount due is not paid after initial contact, the Superintendent or a designee will send a letter by certified mail, return receipt requested, demanding payment within 30 days of mailing the letter.

If the amount due is not paid within 30 days of mailing the demand letter, the Superintendent or a designee will contact the school attorney for further collection action.

XLVIII. INTERNAL SUBSTITUTING

Teachers may be asked from time to time to cover for a colleague during their plan period. This is generally a voluntary request, but makes possible more options for all teachers to participate in professional growth. However there may be times when an internal sub will need to be assigned. Teachers covering classes during their assigned prep period may receive financial compensation.

XLIX. LESSON PLANS / COURSE OUTLINE

Weekly lesson plans should be submitted to the administration on or before 8:00 AM on the first day of the school week. Lesson plans should identify the desired learning outcomes, teaching/learning activities, and assessment procedures when appropriate. Lesson plans may be submitted electronically or in paper format.

L. LICENSURE REQUIREMENTS

As a condition of employment, all teachers must have or be eligible to receive a Professional Educator License from the State of Illinois. Information on obtaining a license, endorsements, and renewal may be obtained through the Regional Office of Education. The Illinois School Code states that no one may teach or supervise in the public schools nor receive for teaching or supervising any part of any public school fund who does not hold an educator license granted by the State Superintendent of Education.

LI. MAILBOX

Every teacher has an assigned mailbox, which is located in the main office. Teachers are required to check their mailbox at least once per day.

LII. MAINTENANCE AND REPAIR IN ROOMS

If there is any maintenance work that needs to be done in your room, fill out a maintenance request located in the office, and return it to the Principal's mailbox. When the job is completed, the form will be returned for your approval.

LIII. MANDATED REPORTING

Mandated reporters are professionals who may work with children in the course of their professional

duties. School Personnel: includes administrators and certified and non-certified staff such as the superintendent, teacher, principal, school counselor, school nurse, school social worker, assistant principal, teacher's aide, truant officer, school psychologist, and secretary, including personnel of institutions of higher education. If an allegation of abuse is raised to a school board member, the school board as a governing body or the individual member has the authority to direct the superintendent of the school district, or other equivalent school administrator, to report the abuse as required by the Abused and Neglected Child Reporting Act.

A school district employee who has reasonable cause to suspect that a student may be an abused or neglected child shall report such case to the Illinois Department of Children and Family Services (DCFS). Traditional considerations of confidentiality shall not constitute grounds for failure to report such cases.

The employee may notify the administration that a report has been made to DCFS. The Superintendent or any other district administrator may not, in any instance, change any report of child abuse or neglect made by an employee to DCFS or make any attempt to interfere in the making of a report to DCFS.

DCFS Child Abuse Hotline: 1-800-252-2873

LIV. MEDICAL EMERGENCY PROCEDURES

The safety of staff members is a matter of concern at all times. School buildings and grounds should be regularly inspected for health, fire and safety hazards. The Superintendent, or his designee, will help reduce the chances for accidents by developing rules for safety.

The Superintendent, and/or his designee, should establish procedures for emergency care for staff. The procedures shall range from simple first aid to professional assistance. In emergency situations, District employees should respond with actions that reflect sound judgment, reasonableness, and maturity. A copy of the medical emergency procedures shall be readily available in the office and distributed each year to all staff members. All staff members shall be expected to follow such procedures.

LV. NEWSLETTER ARTICLES

Articles written by teachers for the newsletter will be due around the end of each quarter. Articles should address items of interest to parents, may include pictures of classroom activities, or provide information for upcoming events. The newsletter will be sent out to all families, community members who have requested, and community organizations, and newspapers.

OUTSIDE EMPLOYMENT AND CONFLICT OF INTEREST

No employees of the District shall accept any money or gratuity from any corporation or business firm that has established a business relationship with the District without first securing written permission from the Superintendent. Any such money or gratuity shall become District property.

For the purpose of acquiring profit or personal gain, no employees shall act as agents of the District nor shall any employee of the District act as agents of any corporation or business firm in any transaction with the District.

Employees shall not engage in employment that would affect their usefulness as employees in the system, would make time and/or energy demands upon them which could interfere with their effectiveness in performing regular assigned duties, would compromise or embarrass the District, would adversely affect their employment status or professional standing or would in any way conflict with assigned duties.

Employees shall not engage in any other employment or in any private business during regular school hours and such other times as are necessary to fulfill appropriate assigned duties.

LVI. PARENT / TEACHER CONFERENCES

Parents may request a conference with a teacher at any time during the school year. Scheduled parent-teacher conferences are typically planned to follow the end of the first and third nine-week grading periods. Parent conferences held at other times in the year should be scheduled at times convenient to both teachers and parents. At times, the Principal may participate in the conference at either the parent or teacher's request. See the calendar for the dates for the Parent/Teacher Conference schedule.

LVII. PARKING

Staff parking is located at the south end of Main Street, by the main office, and the north end of the lower parking lot.

LVIII. PERSONNEL FILES

The office will maintain an employment file for each teacher employed in the School District. Teachers are responsible for providing the following information, which shall be placed in the employment file:

- a) Official college transcripts showing all coursework, including additional coursework successfully completed, to be used toward placement on the salary schedule.
- b) A copy of the teachers' Professional Educator License.
- c) Withholding tax exemption certificate. (See Bookkeeper).
- d) Physician's statement of physical fitness to teach (new teachers to the District).

The School District will only confirm position and dates of employment when requested for information about a District employee. An employee who would like the District to release additional information must submit a written request to the Superintendent of designee.

A teacher can request to see his/her personnel file at any time according to provisions in the Personnel Record Review Act. These files are located in the District Bookkeeper's office. Upon employment, all personnel files must be completed before a payroll check is issued.

LIX. PEST MANAGEMENT

The Integrated Pest Management Plan is available for inspection in the Facilities Manager's Office located at 210 South Main Street. Please contact the Superintendent with questions or concerns.

LX. PHYSICAL EXAMS

New employees shall furnish evidence of physical fitness to perform assigned duties and freedom from communicable disease. A physician licensed in Illinois, or any other state, to practice medicine and surgery in all its branches shall perform all physical fitness examinations. The employee shall have taken the physical examination no more than ninety (90) days prior to the employee submitting evidence of the same to the Board of Education.

The Board of Education may from time to time require an additional examination of any employee by a physician licensed in Illinois or any other state to practice medicine and surgery in all its branches. The Board of Education shall pay the expenses of any such examination.

LXI. POLITICAL ACTIVITIES OF THE STAFF

The District recognizes the right of all employees, as individuals, to engage in partisan political activities of their choice. No employee shall engage in partisan political activities during the hours that the District employs them. When not on duty at such employment, all District employees shall have the same rights as other citizens to participate or not to participate in partisan political activities. Students shall not be

used in any manner for promoting a political candidate or issue.

This policy shall not be construed so as to prohibit discussion and study of politics and political issues when such discussion and study are appropriate to classroom objectives in such areas as history, political science, and current events; opportunity to participate in such citizenship activities outside the classroom as jury duty, voting, discussion of political issues and campaigning for candidates; any teacher or other District employee from holding public office so long as the performance of duties thereof are not in conflict with teaching or regular assignments.

LXII. PROFESSIONALISM

An ever-increasing concern of many school districts today is confidentiality in schools. It is important that matters that occur in school be properly handled. Rumor and hearsay can undermine the effectiveness of a teacher and make school a nightmare for students. As an employee, it is important that you do not add to these rumors. Matters concerning students such as performance and behavior should not be discussed with anyone outside of school with the exception of the student's parent/guardian.

Also, matters concerning the performance of other staff members should not be discussed with anyone outside of school. If you have concerns regarding a staff member, those concerns should be discussed with the administration first. The evaluation of staff is an administrative matter. Sharing your opinions on the performance of another colleague with others outside the school is an unfair evaluation of that employee and can unfairly damage an employee's career and tarnish the reputation of the school district. Those who are responsible for this type of unprofessional behavior may run the risk of disciplinary action or even possibly legal action.

LXIII. PROGRESS REPORTS

Progress reports will be sent to parents to update them on the child's academic progress. The reports will be issued at the midterm (approximately the 5th week) of each quarter.

LXIV. RELEASE OF STUDENT INFORMATION

General information may be released to the public in regard to any individual student of the school district as necessity or desirability arises. Any student, parent, or guardian who does not want this information released to the public must make an objection, in writing, to the administration of the school that the student is attending. It is desirable to renew this objection at the beginning of each school year. The written notification of a parent's right to refuse release should include the date of notification, parent or guardian's name(s), and the name(s) of the student(s).

The information subject to release includes the student's name, address, telephone listing, date and place of birth, information for participation in an officially recognized activity or sport, any academic awards or honors, weight and height of members of athletic teams, dates of attendance, degrees, and the most recent previous school or institution attended by the student.

LXV. RELIGIOUS HOLIDAYS

Staff members may request an absence for a religious holiday provided they give notice of his or her intention to be absent at least five days prior to the date of absence.

The employee may use earned vacation time, holiday time, personal leave or paid time in accordance with the collective bargaining agreement, where applicable, to make up for the absence. The employee may also request a per diem deduction. Nothing in this Policy shall be construed to deny the employee the right to engage in work, during hours other than the employee's regular working hours, consistent with the school district's operational needs, to compensate for work time lost for religious reasons. An employee who elects such deferred work shall be compensated at the wage rate that he or she would have earned during the originally scheduled work period.

LXVI. REQUISITIONING

Supplies are requisitioned during the spring for the following year. Instructions will be forwarded to all staff in the spring. The money budgeted for your department is ear-marked for the purchase of materials to accommodate the students for the upcoming school year. Purchase orders placed too late in the year to accommodate those students will not be accepted.

LXVII. RETENTION OF STUDENT RECORDS

Each school shall maintain student permanent records and the information contained therein for not less than 60 years after the student has transferred, graduated or otherwise permanently withdrawn from the school.

Each school shall maintain student temporary records and the information contained in those records for not less than 5 years after the student has transferred, graduated, or otherwise withdrawn from the school. However, student temporary records shall not be disclosed except by court order. A school may maintain indefinitely anonymous information from student temporary records for authorized research, statistical reporting or planning purposes, provided that no student or parent can be individually identified from the information maintained.

LXVIII. RIGHTS OF DISABLED STUDENTS

The Scales Mound Board of Education recognizes the right of all students, including those who are disabled, to a free and appropriate public education.

LXIX. SCHOOL IMPROVEMENT DAYS

School improvement days are scheduled throughout the school year. Cafeteria service will be available with the buses leaving at 11:30. Professional development activities will take place the remainder of the day.

LXX. SCHOOL SPONSORED ACTIVITIES / STUDENT ORGANIZATIONS

Club or class sponsors must supervise all student participation activities involving their club, organization, or class sponsored event. Rules for appropriate student conduct apply and should be enforced whether the event is at school or off school grounds.

Facilities used for student-sponsored events are under the supervision of the sponsor. Be sure to reserve needed facilities in advance of the event through the office. Sponsors are to be sure they have the necessary material for the event including:

- a) Keys to open and close the event location
- b) A cash box (if necessary) and
- c) Adequate supervision for the event.

When the event is over, be sure adequate clean up of the facilities is done immediately afterward, all lights are turned off, and all windows and doors locked before leaving the building.

LXXI. SECURITY CAMERAS

Please be advised there are security cameras in use throughout the building. These cameras monitor the building 24-hours per day.

LXXII. SEATING CHARTS

Teachers should develop a seating chart for each class, including study hall. Seating charts. A copy of the seating chart must be included in the substitute teacher's folder. Please provide clear and accurate seating charts for your classroom.

LXXIII. SOLICITATIONS BY THE STAFF AND FROM OUTSIDE SOURCES

Solicitation for donations and sales by employees in a school building is prohibited unless approved by the Principal and the Superintendent. Solicitation by outside organizations and/or individuals for donations from staff is not permitted. In extenuating circumstances, upon a request to the Superintendent, the Board of Education will consider an exception. No type of a sale solicitation in the District by an outside organization and/or individual is allowed without prior approval from the Superintendent.

LXXIV. STRUGGLING STUDENTS

If a student is struggling in your class, there are a number of options available. Be sure that you keep the parent of the student informed of the situation and make every effort to serve this student's needs. Some possible options to assist the struggling student:

- a) Work with parents on a study or remediation plan.
- b) Consult with Principal regarding RtI services or student support services.

LXXV. STUDENT RETENTION

School Board policy 6:280 states:

The administration and professional staff shall establish a system of grading and reporting academic achievement to students and their parent and guardians. The system shall also determine when promotion and graduation requirements are met. The decision to promote a student to the next grade level shall be based on successful completion of the curriculum, attendance, and performance on the Illinois Partnership for Assessment of Readiness for College and Careers (PARCC) and/or other assessments. A student shall not be promoted based upon age or any other social reason not related to academic performance. The administration shall determine remedial assistance for a student who is not promoted.

LXXVI. STUDY HALL PROCEDURES

The purpose of study hall is to provide a quiet place for study. Students should be kept seated throughout the period and encouraged to stay busy doing homework or reading. Students are not allowed a period of time to talk, play games, or gather in small groups as a reward for following the rules that are expected of all students in study halls.

The following is a list of rules that should be enforced by all study hall teachers:

- a) No more than one student should leave the study hall at a time.
- b) Students are not permitted to visit teachers that have a class unless they have a signed a pass from the teacher prior to the beginning of study hall. Passes shall state time left and date.
- c) Students must sit in their assigned seats.
- d) Food and drink are prohibited in the room.
- e) All desks and chairs will be returned to their proper places at the end of the period.
- f) Litter should not be left on the desks or floor.
- g) Marking on the desks or walls is not permitted.
- h) Throwing objects or talking without permission is not allowed.
- i) Students should not be allowed to play cards or play other board games.

LXXVII. SUBSTITUTE PREPARATION

All teachers will prepare a substitute folder and update information in the folder periodically to keep it current. Your substitute folder may remain in your classroom but it should be easily accessible for the substitute.

The following information should be included in the substitute folder:

- a) A daily schedule, showing all the classes, study halls and supervisory duties to be performed.
- b) Seating charts and explanation of our attendance procedure. All the correct attendance cards and forms should be available.
- c) "Generic" type lesson plans. These are daily assignments that will fit into your curriculum and keep the students on task for 45 minutes for each subject taught (Jr.- Senior High).
- d) Any special advice or instructions that will help the substitute understand the situation he/she is undertaking.
- e) Copy of the Crisis Management Plan and the teacher's role in that plan.

The role of the substitute teacher is extremely important. Whatever advance preparation we can do to make the substitute's job a little less stressful will be to our students' and the schools' benefit. Although an emergency may arise which make it difficult for a substitute to implement the normal activities for that day, be sure you have planned something productive for the students to do. Do not leave the substitute instructions such as "Study Hall/ or videos today in all classes."

LXXVIII. TOBACCO USAGE ON SCHOOL GROUNDS

Federal law requires that a school district prohibit smoking in every indoor, enclosed school facility that is owned, leased, or contracted for and utilized for the provision of routine and regular kindergarten, elementary, and secondary education and library services to students. A school district that violates the law risks loss of federal funds.

The School Code requires schools to prohibit the use of tobacco on school property when the property is being used for any school purpose. The school board may not authorize or permit any exception or exemption from the prohibition at any place or at any time. The tobacco ban includes all events or activities or other use of school property that the school board or school officials authorize or permit on school property including interscholastic or extracurricular activities or other events sponsored by the school board in which students participate. The ban includes cigarettes, cigars or tobacco in any other form including loose, cut, shredded, ground, powdered, compressed or leaf tobacco that is intended to be placed in the mouth without being smoked.

LXXIX. USE OF DISTRICT BUILDING

Employee(s) may request the use of a classroom for meetings following these guidelines:

- a) The employee(s) shall request the use of the school building at least five (5) days prior to the intended meeting date by completing a facilities use form.
- b) The Superintendent shall approve all requests for use of building facilities.
- c) All meetings shall be held when school is not in session and must not interfere with the instructional and/or extracurricular programs.
- d) When special custodial services are required, the Superintendent as established and approved by the Board of Education may charge the employee(s) a fee.

LXXX. VISITORS AND GUESTS

Parents are encouraged to visit classes as observers. An appointment for such visits is a courtesy to the teacher and will result in less disruption of the educational program. If a parent wishes to confer with the teacher, an appointment may be made through the Principal's office. Conferences will be held outside of school hours or during the teacher's preparation period.

Persons living outside the District or who are not of school age are not permitted to visit classes without advance permission from the Principal. All visitors are expected to check in at the school office before proceeding to their destination. If you have any questions about whether an individual is authorized to be in the building, please ask for that individual's pass. If they do not have a visitor's pass, please direct them to the office and/or contact the office immediately.

LXXXI. WEDNESDAY NIGHT ACTIVITIES

School sponsored activities should be avoided on Wednesday evening after 6:00 P.M. All Sunday activities must be approved by the Board of Education.

LXXXII. WORK HOURS

Teachers should be in the building each workday from either 7:45 A.M. to 3:30 P.M. or 7:30 A.M. to 3:15 P.M.

If a teacher finds it necessary to leave the school grounds during the school day, they must notify the office.

When matters may dictate leaving the building during a plan period, please be sure to check out through the office first.

Office hours are 7:30 a.m. – 3:30 p.m. Monday – Friday.

LXXXIII. WORKROOM / LOUNGE

The teachers' workroom/lounge is available for all teachers. The teachers' workroom/lounge is off limits to students unless they are under the direct supervision of a teacher.

Appendix: A. Related Board Policies

- 2:105 Ethics and Gift Ban
- 5:10 Equal Employment Opportunity and Minority Recruitment
- 5:20 Workplace Harassment Prohibited
- 5:30 Hiring Process and Criteria
- 5:50 Drug and Alcohol Free Workplace
- 5:60 Expenses
- 5:90 Abused and Neglected Child Reporting
- 5:100 Staff Development Program
- 5:120 Ethics and Conduct
- 5:130 Responsibilities Concerning Internal Information
- 5:140 Solicitations by or From Staff
- 5:170 Copyright
- 5:180 Temporary Illness or Temporary Incapacity
- 5:200 Terms and Conditions of Employment and Dismissal
- 5:230 Maintaining Student Discipline
- 5:280 Duties and Qualifications
- 5:290 Employment Termination and Suspensions
- 6:235 Access to Electronic Networks
- 7:20 Harassment of Students Prohibited
- 7:190 Student Discipline
- 7:340 Student Records
- 8:30 Visitors to and Conduct on School Property

Ethics and Gift Ban

Prohibited Political Activity

The following precepts govern political activities being conducted by District employees and Board members:

1. No employee shall intentionally perform any "political activity" during any "compensated time," as those terms are defined herein.
2. No Board member or employee shall intentionally use any District property or resources in connection with any political activity.
3. At no time shall any Board member or employee intentionally require any other Board member or employee to perform any political activity: (a) as part of that Board member's or employee's duties, (b) as a condition of employment, or (c) during any compensated time off, such as, holidays, vacation, or personal time off.
4. No Board member or employee shall be required at any time to participate in any political activity in consideration for that Board member or employee being awarded additional compensation or any benefit, whether in the form of a salary adjustment, bonus, compensatory time off, continued employment or otherwise; nor shall any Board member or employee be awarded additional compensation or any benefit in consideration for his or her participation in any political activity.

A Board member or employee may engage in any activity that: (1) is otherwise appropriate as part of his or her official duties, or (2) is undertaken by the individual on a voluntary basis that is not prohibited by this policy.

Limitations on Receiving Gifts

Except as permitted by this policy, no Board member or employee, and no spouse of or immediate family member living with a Board member or employee shall intentionally solicit or accept any "gift" from any "prohibited source," as those terms are defined herein, or that is otherwise prohibited by law or policy. No prohibited source shall intentionally offer or make a gift that violates this policy.

The following are exceptions to the ban on accepting gifts from a prohibited source:

1. Opportunities, benefits, and services that are available on the same conditions as for the general public.
2. Anything for which the Board member or employee, or his or her spouse or immediate family member, pays the fair market value.
3. Any: (a) contribution that is lawfully made under the Election Code, or (b) activities associated with a fundraising event in support of a political organization or candidate.
4. Educational materials and missions.
5. Travel expenses for a meeting to discuss business.
6. A gift from a relative, meaning those people related to the individual as father, mother, son, daughter, brother, sister, uncle, aunt, great aunt, great uncle, first cousin, nephew, niece, husband, wife, grandfather, grandmother, grandson, granddaughter, father-in-law, mother-in-law, son-in-law, daughter-in-law, brother-in-law, sister-in-law, stepfather, stepmother, stepson, stepdaughter, stepbrother, stepsister, half brother, half sister, and including the father, mother, grandfather, or grandmother of the individual's spouse and the individual's fiancé or fiancée.

7. Anything provided by an individual on the basis of a personal friendship unless the recipient has reason to believe that, under the circumstances, the gift was provided because of the official position or employment of the recipient or his or her spouse or immediate family member and not because of the personal friendship. In determining whether a gift is provided on the basis of personal friendship, the recipient shall consider the circumstances under which the gift was offered, such as: (a) the history of the relationship between the individual giving the gift and the recipient of the gift, including any previous exchange of gifts between those individuals; (b) whether to the actual knowledge of the recipient the individual who gave the gift personally paid for the gift or sought a tax deduction or business reimbursement for the gift; and (c) whether to the actual knowledge of the recipient the individual who gave the gift also at the same time gave the same or similar gifts to other Board members or employees, or their spouses or immediate family members.
8. Food or refreshments not exceeding \$75 per person in value on a single calendar day; provided that the food or refreshments are: (a) consumed on the premises from which they were purchased or prepared; or (b) catered. "Catered" means food or refreshments that are purchased ready to consume which are delivered by any means.
9. Food, refreshments, lodging, transportation, and other benefits resulting from outside business or employment activities (or outside activities that are not connected to the official duties of a Board member or employee), if the benefits have not been offered or enhanced because of the official position or employment of the Board member or employee, and are customarily provided to others in similar circumstances.
10. Intra-governmental and intergovernmental gifts. "Intra-governmental gift" means any gift given to a Board member or employee from another Board member or employee, and "inter-governmental gift" means any gift given to a Board member or employee from an officer or employee of another governmental entity.
11. Bequests, inheritances, and other transfers at death.
12. Any item or items from any one prohibited source during any calendar year having a cumulative total value of less than \$100.

Each of the listed exceptions is mutually exclusive and independent of every other.

A Board member or employee, his or her spouse or an immediate family member living with the Board member or employee, does not violate this policy if the recipient promptly takes reasonable action to return a gift from a prohibited source to its source or gives the gift or an amount equal to its value to an appropriate charity that is exempt from income taxation under [26 U.S.C. §501\(c\)\(3\)](#).

Enforcement

The Board President and Director shall seek guidance from the Board attorney concerning compliance with and enforcement of this policy and State ethics laws. The Board may, as necessary or prudent, appoint an Ethics Advisor for this task.

Written complaints alleging a violation of this policy shall be filed with the Director or Board President. If attempts to correct any misunderstanding or problem do not resolve the matter, the Director or Board President shall, after consulting with the Board attorney, either place the alleged violation on a Board meeting agenda for the Board's disposition or refer the complainant to Board policy [2:260](#), *Uniform Grievance Procedure*. A Board member who is related, either by blood or by marriage, up to the degree of first cousin, to the person who is the subject of the complaint, shall not participate in any decision-making capacity for the Board. If the Board finds it more likely than not that the allegations in a complaint are true, it shall notify the State's Attorney and/or consider disciplinary action for the employee.

Definitions

Unless otherwise stated, all terms used in this policy have the definitions given in the State Officials and Employees Ethics Act, [5 ILCS 430/1-5](#).

"Political activity" means:

1. Preparing for, organizing, or participating in any political meeting, political rally, political demonstration, or other political event.
2. Soliciting contributions, including but not limited to the purchase of, selling, distributing, or receiving payment for tickets for any political fundraiser, political meeting, or other political event.
3. Soliciting, planning the solicitation of, or preparing any document or report regarding anything of value intended as a campaign contribution.
4. Planning, conducting, or participating in a public opinion poll in connection with a campaign for elective office or on behalf of a political organization for political purposes or for or against any referendum question.
5. Surveying or gathering information from potential or actual voters in an election to determine probable vote outcome in connection with a campaign for elective office or on behalf of a political organization for political purposes or for or against any referendum question.
6. Assisting at the polls on Election Day on behalf of any political organization or candidate for elective office or for or against any referendum question.
7. Soliciting votes on behalf of a candidate for elective office or a political organization or for or against any referendum question or helping in an effort to get voters to the polls.
8. Initiating for circulation, preparing, circulating, reviewing, or filing any petition on behalf of a candidate for elective office or for or against any referendum question.
9. Making contributions on behalf of any candidate for elective office in that capacity or in connection with a campaign for elective office.
10. Preparing or reviewing responses to candidate questionnaires.
11. Distributing, preparing for distribution, or mailing campaign literature, campaign signs, or other campaign material on behalf of any candidate for elective office or for or against any referendum question.
12. Campaigning for any elective office or for or against any referendum question.
13. Managing or working on a campaign for elective office or for or against any referendum question.
14. Serving as a delegate, alternate, or proxy to a political party convention.
15. Participating in any recount or challenge to the outcome of any election.

With respect to an employee whose hours are not fixed, "compensated time" includes any period of time when the employee is on premises under the control of the District and any other time when the employee is executing his or her official duties, regardless of location.

"Prohibited source" means any person or entity who:

1. Is seeking official action by: (a) a Board member, or (b) an employee, or by the Board member or another employee directing that employee;
2. Does business or seeks to do business with: (a) a Board member, or (b) an employee, or with the Board member or another employee directing that employee;
3. Conducts activities regulated by: (a) a Board member, or (b) an employee or by the Board member or another employee directing that employee;
4. Has an interest that may be substantially affected by the performance or non-performance of

the official duties of the Board member or employee;

5. Is registered or required to be registered with the Secretary of State under the Lobbyist Registration Act, except that an entity does not become a prohibited source merely because a registered lobbyist is one of its members or serves on its board of directors; or
6. Is an agent of, a spouse of, or an immediate family member living with a prohibited source. "Gift" means any gratuity, discount, entertainment, hospitality, loan, forbearance, or other tangible or intangible item having monetary value including but not limited to, cash, food and drink, and honoraria for speaking engagements related to or attributable to government employment or the official position of a Board member or employee.

Complaints of Sexual Harassment Made Against Board Members by Elected Officials

Pursuant to the State Officials and Employees Ethics Act ([5 ILCS 430/70-5](#)), members of the Board and other elected officials are encouraged to promptly report claims of sexual harassment by a Board member. Every effort should be made to file such complaints as soon as possible, while facts are known and potential witnesses are available. If the official feels comfortable doing so, he or she should directly inform the individual that the individual's conduct or communication is offensive and must stop.

Board members and elected officials should report claims of sexual harassment against a member of the Board to the Board President or Superintendent. If the report is made to the Superintendent, the Superintendent shall promptly notify the President, or if the President is the subject of the complaint, the Vice President. Reports of sexual harassment will be confidential to the greatest extent practicable.

When a complaint of sexual harassment is made against a member of the Board by another Board member or other elected official, the Board President shall appoint a qualified outside investigator who is not a District employee or Board member to conduct an independent review of the allegations. If the allegations concern the President, or the President is a witness or otherwise conflicted, the Vice President shall make the appointment. If the allegations concern both the President and Vice President, and/or they are witnesses or otherwise conflicted, the Board Secretary shall make the appointment. The investigator shall prepare a written report and submit it to the Board.

If a Board member has engaged in sexual harassment, the matter will be addressed in accordance with the authority of the Board.

The Superintendent will post this policy on the District website and/or make this policy available in the District's administrative office.

LEGAL REF.:

[5 ILCS 430/](#), State Officials and

Employees Ethics Act. [10 ILCS 5/9-25.1](#),

Election Interference Prohibition Act.

CROSS REF.: [2:100](#) (Board Member Conflict of Interest), [2:110](#) (Qualifications, Term, and Duties of Board Officers), [2:260](#) (Uniform Grievance Procedure), [4:60](#) (Purchases and Contracts), [5:120](#) (Employee Ethics; Conduct; and Conflict of Interest)

Adopted: January 21, 2021 Scales Mound CUSD 211

Equal Employment Opportunity and Minority Recruitment

The School District shall provide equal employment opportunities to all persons regardless of their race, color, religion, creed, national origin, sex, sexual orientation, age, ancestry, marital status, arrest record, military status, order of protection status, unfavorable military discharge, citizenship status provided the individual is authorized to work in the United States, use of lawful products while not at work, being a victim of domestic violence, sexual violence, or gender violence; genetic information; physical or mental handicap or disability, if otherwise able to perform the essential functions of the job with reasonable accommodation; pregnancy, childbirth, or related medical conditions; credit history, unless a satisfactory credit history is an established bona fide occupational requirement of a particular position; or other legally protected categories. No one will be penalized solely for his or her status as a registered qualifying patient or a registered designated caregiver for purposes of the Compassionate Use of Medical Cannabis Program Act, [410 ILCS 130/](#).

Persons who believe they have not received equal employment opportunities should report their claims to the Nondiscrimination Coordinator and/or a Complaint Manager for the Uniform Grievance Procedure. These individuals are listed below. No employee or applicant will be discriminated or retaliated against because he or she: (1) requested, attempted to request, used, or attempted to use a reasonable accommodation as allowed by the Illinois Human Rights Act, or (2) initiated a complaint, was a witness, supplied information, or otherwise participated in an investigation or proceeding involving an alleged violation of this policy or State or federal laws, rules or regulations, provided the employee or applicant did not make a knowingly false accusation nor provide knowingly false information.

Administrative Implementation

The Superintendent shall appoint a Nondiscrimination Coordinator for personnel who shall be responsible for coordinating the District's nondiscrimination efforts. The Nondiscrimination Coordinator may be the Superintendent or a Complaint Manager for the Uniform Grievance Procedure. The Superintendent shall insert into this policy the names, addresses, and telephone numbers of the District's current Nondiscrimination Coordinator and Complaint Managers.

Nondiscrimination Coordinator:

Dr. Marybeth DeLaMar, Superintendent
210 Main St., Scales Mound, IL 61075
billcaron@scalesmound.net
815-845-2215, ext. 113

Complaint Managers:

Dr. Marybeth DeLaMar, Superintendent
Dr. Matt Wiederholt
210 Main St., Scales Mound, IL 61075
marybethdelamar@scalesmound.net 815-845-2215, ext. 113
mattwiederholt@scalesmound.net 815-845-2215, ext. 112

The Superintendent shall also use reasonable measures to inform staff members and applicants that the District is an equal opportunity employer, such as by posting required notices and including this policy in the appropriate handbooks.

Minority Recruitment

The District will attempt to recruit and hire minority employees. The implementation of this policy may include advertising openings in minority publications, participating in minority job fairs, and recruiting at colleges and universities with significant minority enrollments. This policy, however, does not require or permit the District to give preferential treatment or special rights based on a protected status without evidence of past discrimination.

LEGAL REF.:

[8 U.S.C. §1324a](#) *et seq.*, Immigration Reform and Control Act.

[20 U.S.C. §1681](#) *et seq.*, Title IX of the Education Amendments of 1972, implemented by [34](#)

[C.F.R. Part 106](#), [29 U.S.C. §206](#)(d), Equal Pay Act.

[29 U.S.C. §621](#) *et seq.*, Age Discrimination

in Employment Act. [29 U.S.C. §701](#) *et seq.*,

Rehabilitation Act of 1973.

[38 U.S.C. §4301](#) *et seq.*, Uniformed Services Employment and Reemployment

Rights Act (1994). [42 U.S.C. §1981](#) *et seq.*, Civil Rights Act of 1991.

[42 U.S.C. §2000e](#) *et seq.*, Title VII of the Civil Rights Act of 1964, implemented by [29 C.F.R.](#)

[Part 1601](#). [42 U.S.C. §2000ff](#) *et seq.*, Genetic Information Nondiscrimination Act of 2008.

[42 U.S.C. §2000d](#) *et seq.*, Title VI of the Civil Rights Act of 1964.

[42 U.S.C. §2000e](#)(k), Pregnancy Discrimination Act.

[42 U.S.C. §12111](#) *et seq.*, Americans with Disabilities Act, Title I.

[Ill. Constitution, Art. I](#), §§17, 18, and 19.

[105 ILCS 5/10-20.7](#), [5/20.7a](#), [5/21.1](#), [5/22.4](#), [5/23.5](#), [5/22-19](#), [5/24-4](#), [5/24-4.1](#), and [5/24-7](#).

[410 ILCS 130/40](#), Compassionate Use of Medical Cannabis Program Act.

[410 ILCS 513/25](#), Genetic Information Privacy Act.

[740 ILCS 174/](#), Ill. Whistleblower Act.

[775 ILCS 5/1-103](#), [5/2-102](#), [103](#), and [5/6-101](#), Ill. Human Rights Act.

[775 ILCS 35/5](#), Religious Freedom Restoration Act.

[820 ILCS 55/10](#), Right to Privacy in the Workplace Act.

[820 ILCS 70/](#), Employee Credit Privacy Act.

[820 ILCS 75/](#), Job Opportunities for Qualified Applicants Act. [820](#)

[ILCS 260/](#), Nursing Mothers in the Workplace Act.

[ILCS 112/](#), III. Equal Pay Act of 2003.

[820 ILCS 180/30](#), Victims' Economic Security and Safety Act. [820](#)

CROSS REF.: [2:260](#) (Uniform Grievance Procedure), [5:20](#) (Workplace Harassment Prohibited), [5:30](#) (Hiring Process and Criteria), [5:40](#) (Communicable and Chronic Infectious Disease), [5:50](#) (Drug- and Alcohol-Free Workplace; E-Cigarette, Tobacco, and Cannabis Prohibition), [5:70](#) (Religious Holidays), [5:180](#) (Temporary Illness or Temporary Incapacity), [5:200](#) (Terms and Conditions of Employment and Dismissal), [5:250](#) (Leaves of Absence), [5:270](#) (Employment, At-Will, Compensation, and Assignment), [5:300](#) (Schedules and Employment Year), [5:330](#) (Sick Days, Vacation, Holidays, and Leaves), [7:10](#) (Equal Educational Opportunities), [7:180](#) (Prevention of and Response to Bullying, Intimidation, and Harassment), [8:70](#) (Accommodating Individuals with Disabilities)

Adopted: January 21, 2021 Scales Mound CUSD 211

Scales Mound CUSD 211

5:50 General Personnel

Drug- and Alcohol-Free Workplace; Tobacco Prohibition

All District workplaces are drug- and alcohol-free workplaces.

All employees are prohibited from engaging in any of the following activities while on District premises or while performing work or being *on call* for the District:

1. Unlawful manufacture, dispensing, distribution, possession, or use of an illegal or controlled substance, or being impaired by or under the influence of any illegal substance or any detectible use of any illegal substance regardless of when or where the use occurred.
2. Distribution, consumption, use, possession, or being impaired by or under the influence of an alcoholic beverage; being present on District premises or while performing work for the District when alcohol consumption is detectible, regardless of when and/or where the use occurred.
3. Distribution, consumption, possession, use, or being impaired by or under the influence of cannabis; being present on District premises or while performing work for the District when impaired by or under the influence of cannabis, regardless of when and/or where the use occurred, unless distribution, possession, and/or use is by a school nurse or school administrator pursuant to *Ashley's Law*, [105 ILCS 5/22-33](#). The District considers employees impaired by or under the influence of cannabis when there is a good faith belief that an employee manifests the specific articulable symptoms listed in the Cannabis Regulation and Tax Act (CRTA).

For purposes of this policy a controlled substance means a substance that is:

1. Not legally obtainable,
2. Being used in a manner different than prescribed,
3. Legally obtainable, but has not been legally obtained, or
4. Referenced in federal or State controlled substance acts.

As a condition of employment, each employee shall:

1. Abide by the terms of the Board policy respecting a drug-and alcohol-free workplace; and
2. Notify his or her supervisor of his or her conviction under any criminal drug statute for a violation occurring on the District premises or while performing work for the District, no later than five calendar days after such a conviction.

Unless otherwise prohibited by this policy, prescription and over-the-counter medications are not prohibited when taken in standard dosages and/or according to prescriptions from the employee's licensed health care provider, provided that an employee's work performance is not impaired.

To make employees aware of the dangers of drug and alcohol abuse, the Superintendent or designee shall perform each of the following:

1. Provide each employee with a copy of this policy.
2. Post notice of this policy in a place where other information for employees is posted.
3. Make available materials from local, State, and national anti-drug and alcohol-abuse organizations.
4. Enlist the aid of community and State agencies with drug and alcohol informational and rehabilitation programs to provide information to District employees.
 - a. The dangers of drug use in the workplace,
 - b. Available drug and alcohol counseling, rehabilitation, re-entry, and any employee assistance programs,
 - c. The penalties that the District may impose upon employees for violations of this policy.
5. Remind employees that policy [6:60](#), *Curriculum Content*, requires the District to educate students, depending upon their grade, about drug and substance abuse prevention and relationships between drugs, alcohol, and violence.

E-Cigarette, Tobacco, and Cannabis Prohibition

All employees are covered by the conduct prohibitions contained in policy [8:30](#), *Visitors to and Conduct on School Property*. The prohibition on the use of e-cigarettes, tobacco, and cannabis products applies both (1) when an employee is on school property, and (2) while an employee is performing work for the District at a school event regardless of the event's location.

Tobacco shall have the meaning provided in [105 ILCS 5/10-20.5b](#).

Cannabis shall have the meaning provided in the CRTA, [410 ILCS 705/1-10](#).

E-Cigarette is short for electronic cigarette and includes, but is not limited to, any electronic nicotine delivery system (ENDS), electronic cigar, electronic cigarillo, electronic pipe, electronic hookah, vape pen, or similar product or device, and any components or parts that can be used to build the product or device.

District Action Upon Violation of Policy

An employee who violates this policy may be subject to disciplinary action, including termination. In addition or alternatively, the Board may require an employee to successfully complete an appropriate drug- or alcohol-abuse rehabilitation program.

The Board shall take disciplinary action with respect to an employee convicted of a drug offense in the workplace within 30 days after receiving notice of the conviction.

Should District employees be engaged in the performance of work under a federal contract or grant, or under a State contract or grant of \$5,000 or more, the Superintendent shall notify the appropriate State or federal agency from which the District receives contract or grant monies of the employee's conviction within 10 days after receiving notice of the conviction.

Disclaimer

The Board reserves the right to interpret, revise or discontinue any provision of this policy pursuant to the

Suspension of Policies subhead in policy [2:240](#), *Board Policy*

Development. REF.;

Americans With Disabilities Act, [42 U.S.C. §12114](#).

Controlled Substances Act, [21 U.S.C. §812](#); [21](#)

[C.F.R. §1308.11-1308.15](#). Drug-Free Workplace Act

of 1988, [41 U.S.C. §8101](#) *et seq.*

Safe and Drug-Free School and Communities Act of 1994, [20 U.S.C. §7101](#) *et seq.*

[30 ILCS 580/](#), Drug-Free Workplace Act. [105 ILCS 5/10-20.5b](#).

[410 ILCS 82/](#), Smoke Free Illinois Act.

[410 ILCS 130/](#), Compassionate Use of Medical Cannabis Program Act.

[410 ILCS 705/1-1](#) *et seq.*, Cannabis Regulation and Tax Act.

[720 ILCS 675](#), Prevention of Tobacco Use by Persons under 21 Years of Age and Sale and Distribution of Tobacco Products Act.

[820 ILCS 55/](#), Right to Privacy in the Workplace Act. [21 C.F.R. Parts 1100](#), [1140](#), and [1143](#).

[23 Ill.Admin.Code §22.20](#).

CROSS REF.: [5:10](#) (Equal Employment Opportunity and Minority Recruitment), [5:120](#) (Employee Ethics; Conduct; and Conflict of Interest), [6:60](#) (Curriculum Content), [8:30](#) (Visitors to and Conduct on School Property)

Adopted: January 21, 2021 Scales Mound CUSD 211

Scales Mound CUSD 211

5:60 General Personnel

Expenses

The Board regulates the reimbursement of all travel, meal, and lodging expenses by resolution. Money shall not be advanced or reimbursed, or purchase orders issued for: (1) the expenses of any person except the employee, (2) anyone's personal expenses, or (3) entertainment expenses. Entertainment includes, but is not limited to, shows, amusements, theaters, circuses, sporting events, or any other place of public or private entertainment or amusement, unless the entertainment is ancillary to the purpose of the program or event. Employees must submit the appropriate itemized, signed, standardized form(s) to support any requests for expense advancements, reimbursements, or purchase orders that show the following:

1. The amount of the estimated or actual expense, with attached receipts for actual incurred expenses.

2. The name and title of the employee who is requesting the expense advancement or reimbursement. Receipts from group functions must include the names, offices, and job titles of all participants.
3. The date(s) of the official business on which the expense advancement, reimbursement, or purchase order will be or was expended.
4. The nature of the official business conducted when the expense advancement, reimbursement, or purchase order will be or was expended.

Advancements

The Superintendent may advance expenses to teachers and other licensed employees for the anticipated actual and necessary expenses to be incurred while attending meetings that are related to their duties and will contribute to their professional development, provided they fall below the maximum allowed in the Board's expense regulations.

Expense advancement requests must be submitted to the Superintendent or designee on the District's standardized estimated expense approval form for employees. After spending expense advancements, employees must use the District's standardized expense reimbursement form and submit to the Superintendent: (a) the itemized, signed advancement voucher that was issued, and (b) the amount of actual expenses by attaching receipts. Any portion of an expense advancement not used must be returned to the District. Expense advancements and vouchers shall be presented to the Board in its regular bill process.

Reimbursements and Purchase Orders

Expense reimbursements and purchase orders may be issued by the Superintendent or designee to employees, along with other expenses necessary for the performance of their duties, provided the expenses fall below the maximum allowed in the Board's expense regulations.

Expense reimbursements and purchase order approvals are not guaranteed and, when possible, employees should seek pre-approval of expenses by providing an estimation of expenses on the District's standardized estimated expense approval form for employees, except in situations when the expense is diminutive. When pre-approval is not sought, employees must seek reimbursement on the District's standardized expense reimbursement form for employees. Expense reimbursements and purchase orders shall be presented to the Board in its regular bill process.

Use of Credit and Procurement Cards

Credit and procurement card usage is governed by policy 4:55, *Use of Credit and Procurement Cards*.

Exceeding the Maximum Allowable Expense Amount(s)

All requests for expense advancements, reimbursements, and purchase orders exceeding the maximum allowed in the Board's expense regulations may only be approved when:

1. The Board's resolution to regulate expenses allows for such approval;
2. An emergency or other extraordinary circumstance exists; and
3. The request is approved by a roll call vote at an open Board meeting.

Registration

When possible, registration fees will be paid by the District in advance.

Travel

The least expensive method of travel will be used, provided that no hardship will be caused to the employee. Employees will be reimbursed for:

1. Air travel at the coach or economy class commercial airline rate. First class or business class air travel will be reimbursed only if emergency circumstances warrant. The emergency

circumstances must be explained on the expense form and Board approval of the additional expense is required. Copies of airline tickets must be attached to the expense form.

2. Rail or bus travel at actual cost. Rail or bus travel costs may not exceed the cost of coach airfare. Copies of tickets must be attached to the expense form to substantiate amounts.
3. Use of personal automobiles at the standard mileage rate approved by the Internal Revenue Service for income tax purposes. The reimbursement may not exceed the cost of coach airfare. Mileage for use of personal automobiles in trips to and from transportation terminals will also be reimbursed. Toll charges and parking costs will be reimbursed.
4. Automobile rental costs when the vehicle's use is warranted. The circumstances for such use must be explained on the expense form.
5. Taxis, airport limousines, or other local transportation costs.

Meals

Meals charged to the District will be reimbursed for meal costs up to \$75 per day. Tips are included with meal charges. Expense forms must explain the meal charges incurred. Alcoholic beverages will not be reimbursed.

Lodging

Employees should request conference rate or mid-fare room accommodations. A single room rate will be reimbursed. Employees should pay personal expenses at checkout. If that is impossible, deductions for the charges should be made on the expense form.

Miscellaneous Expenses

Employees may seek reimbursement for other expenses incurred while attending a meeting sponsored by organizations described herein by fully describing the expenses on the expense form, attaching receipts.

LEGAL REF.: 105 ILCS 5/10-22.32.
Local Government Travel Expense Control Act, 50 ILCS 150/.

CROSS REF.: 2:125 (Board Member Compensation; Expenses), 2:240 (Board Policy Development), 4:50 (Payment Procedures), 4:55 (Use of Credit and Procurement Cards)

ADOPTED: January 17, 2017

Scales Mound CUSD 211

5:90 General Personnel

Abused and Neglected Child Reporting

Any District employee who suspects or receives knowledge that a student may be an abused or neglected child or, for a student aged 18 through 21, an abused or neglected individual with a disability, shall: (1) immediately report or cause a report to be made to the Ill. Dept. of Children and Family Services (DCFS) on its Child Abuse Hotline 1-800-25-ABUSE (1-800-252-2873)(within Illinois); 1-217-524-2606 (outside of Illinois); or 1-800-358-5117 (TTY), and (2) follow directions given by DCFS concerning filing a written report within 48 hours with the nearest DCFS field office. Any District employee who believes a student is in immediate danger of harm, shall first call 911. The employee shall also promptly notify the Superintendent or Building Principal that a report has been made. The Superintendent or Building Principal shall immediately coordinate any necessary notifications to the student's parent(s)/guardian(s) with DCFS, the applicable school resource officer (SRO), and/or local law enforcement.

Negligent failure to report occurs when a District employee personally observes an instance of suspected child abuse or neglect and reasonably believes, in his or her professional or official capacity, that the instance constitutes an act of child abuse or neglect under the Abused and Neglected Child Reporting Act (ANCRA) and he or she, without willful intent, fails to immediately report or cause a report to be made of the suspected abuse or neglect to DCFS.

Any District employee who discovers child pornography on electronic and information technology equipment shall immediately report it to local law enforcement, the National Center for Missing and Exploited Children's CyberTipline 1-800-THE-LOST (1-800-843-5678) or online at report.cybertip.org/ or www.missingkids.org. The Superintendent or Building Principal shall also be promptly notified of the discovery and that a report has been made.

Any District employee who observes any act of hazing that does bodily harm to a student must report that act to the Building Principal, Superintendent, or designee who will investigate and take appropriate action. If the hazing results in death or great bodily harm, the employee must first make the report to law enforcement and then to the Superintendent or Building Principal. Hazing is defined as any intentional, knowing, or reckless act directed to or required of a student for the purpose of being initiated into, affiliating with, holding office in, or maintaining membership in any group, organization, club, or athletic team whose members are or include other students.

Abused and Neglected Child Reporting Act (ANCRA), School Code, and Erin's Law Training

The Superintendent or designee shall provide staff development opportunities for District employees in the detection, reporting, and prevention of child abuse and neglect.
All District employees shall:

1. Before beginning employment, sign the *Acknowledgement of Mandated Reporter Status* form provided by DCFS. The Superintendent or designee shall ensure that the signed forms are retained.
2. Complete mandated reporter training as required by law within three months of initial employment and at least every three years after that date.

The Superintendent will encourage all District educators to complete continuing professional development that addresses the traits and identifiers that may be evident in students who are victims of child sexual abuse, including recognizing and reporting child sexual abuse and providing appropriate follow-up and care for abused students as they return to the classroom setting. The Superintendent or designee will display DCFS- issued materials that list the DCFS toll-free telephone number and methods for making a report under ANCRA in a clearly visible location in each school building.

Alleged Incidents of Sexual Abuse; Investigations

An *alleged incident of sexual abuse* is an incident of sexual abuse of a child, as defined in [720 ILCS 5/11- 9.1A](#), that is alleged to have been perpetrated by school personnel, including a school vendor or volunteer, that occurred: on school grounds during a school activity; or outside of school grounds or not during a school activity.

If a District employee reports an alleged incident of sexual abuse to DCFS and DCFS accepts the report for investigation, DCFS will refer the matter to the local Children's Advocacy Center (CAC). The Superintendent or designee will implement procedures to coordinate with the CAC. DCFS and/or the appropriate law enforcement agency will inform the District when its investigation is complete or has been suspended, as well as the outcome of its investigation. The existence of a DCFS and/or law enforcement investigation will not preclude the District from conducting its own parallel investigation into the alleged incident of sexual abuse in accordance with policy [7:20, Harassment of Students Prohibited](#).

Special Superintendent Responsibilities

The Superintendent shall execute the requirements in Board policy [5:150](#), *Personnel Records*, whenever another school district requests a reference concerning an applicant who is or was a District employee and was the subject of a report made by a District employee to DCFS.

The Superintendent shall notify the State Superintendent and the Regional Superintendent in writing when he or she has reasonable cause to believe that a license holder was dismissed or resigned from the District as a result of an act that made a child an abused or neglected child. The Superintendent must make the report within 30 days of the dismissal or resignation and mail a copy of the notification to the license holder.

Special School Board Member Responsibilities

Each individual Board member must, if an allegation is raised to the member during an open or closed Board meeting that a student is an abused child as defined in ANCRA, direct or cause the Board to direct the Superintendent or other equivalent school administrator to comply with ANCRA's requirements concerning the reporting of child abuse.

If the Board determines that any District employee, other than an employee licensed under [105 ILCS 5/21B](#), has willfully or negligently failed to report an instance of suspected child abuse or neglect as required by ANCRA, the Board may dismiss that employee immediately.

LEGAL REF.:

[105 ILCS 5/10-21.9](#).

[20 ILCS 1305/1-1](#) *et seq.*, Department of Human Services Act. [325 ILCS 5/](#), Abused and Neglected Child

Reporting Act.

[720 ILCS 5/12C-50.1](#), Criminal Code of 2012.

CROSS REF.: [2:20](#) (Powers and Duties of the School Board; Indemnification), [5:20](#) (Workplace Harassment Prohibited), [5:30](#) (Hiring Process and Criteria), [5:100](#) (Staff Development Program), [5:120](#) (Employee Ethics; Conduct; and Conflict of Interest), [5:150](#) (Personnel Records), [5:200](#) (Terms and Conditions of Employment and Dismissal), [5:290](#) (Employment Terminations and Suspensions), [6:120](#) (Education of Children with Disabilities), [6:250](#) (Community Resource Persons and Volunteers), [7:20](#) (Harassment of Students Prohibited), [7:150](#) (Agency and Police Interviews)

Adopted: January 21, 2021 Scales Mound CUSD 211

Staff Development Program

The Superintendent or designee shall implement a staff development program. The goal of such program shall be to update and improve the skills and knowledge of staff members in order to achieve and maintain a high level of job performance and satisfaction. Additionally, the development program for licensed staff members shall be designed to effectuate the District and School Improvement Plans so that student-learning objectives meet or exceed goals established by the District and State.

The staff development program shall provide, at a minimum, at least once every two years, the in-service training of licensed school personnel and administrators on current best practices regarding the identification and treatment of attention deficit disorder and attention deficit hyperactivity disorder,

the application of non-aversive behavioral interventions in the school environment, and the use of psychotropic or psychostimulant medication for school-age children.

The staff development program shall provide, at a minimum, once every two years, the in-service training of all District staff on educator ethics, teacher-student conduct, and school employee-student conduct.

In addition, the staff development program shall include each of the following:

1. At least, once every two years, training of all District staff by a person with expertise on anaphylactic reactions and management.
2. At least every two years, an in-service to train school personnel, at a minimum, to understand, provide information and referrals, and address issues pertaining to youth who are parents, expectant parents, or victims of domestic or sexual violence.
3. Training that, at a minimum, provides District staff with a basic knowledge of matters relating to acquired immunodeficiency syndrome (AIDS) and the availability of appropriate sources of counseling and referral.
4. Training for licensed school personnel and administrators who work with students in grades kindergarten through 12 to identify the warning signs of mental illness and suicidal behavior in youth along with appropriate intervention and referral techniques.
5. Abused and Neglected Child Reporting Act (ANCRA), School Code, and *Erin's Law* Training as follows:
 - a. Staff development for local school site personnel who work with students in grades kindergarten through 8, in the detection, reporting and prevention of child abuse and neglect (see policy [5:90](#), *Abused and Neglected Child Reporting*).
 - b. Within three months of employment, each staff member must complete mandated reporter training from a provider or agency with expertise in recognizing and reporting child abuse. Mandated reporter training must be completed again at least every three years (see policy [5:90](#), *Abused and Neglected Child Reporting*).
 - c. Informing educators about the recommendation in the *Erin's Law* Taskforce Report requesting them to attend continuing professional development programs that address the prevention and identification of child sexual abuse (see policy [5:90](#), *Abused and Neglected Child Reporting*).
6. Education for staff instructing students in grades 7 through 12, concerning teen dating violence as recommended by the District's Nondiscrimination Coordinator, Building Principal, Assistant Building Principal, Dean of Students or Complaint Manager.
7. Ongoing professional development for teachers, administrators, school resource officers, and staff regarding the adverse consequences of school exclusion and justice-system involvement, effective classroom management strategies, culturally responsive discipline, the appropriate and available supportive services for the promotion of student attendance and engagement, and developmentally appropriate disciplinary methods that promote positive and healthy school climates.
8. Annual continuing education and/or training opportunities (*professional standards*) for school nutrition program directors, managers, and staff. Each school food authority's director shall document compliance with this requirement by the end of each school year and maintain documentation for a three year period.
9. All high school coaching personnel, including the head and assistant coaches, and athletic directors must obtain online concussion certification by completing online concussion awareness training in accordance with [105 ILCS 25/1.15](#). Coaching personnel and athletic directors hired on or after 8-19-2014 must be certified before their position's start date.
10. The following individuals must complete concussion training as specified in the Youth Sports Concussion Safety Act: coaches and assistant coaches (whether volunteer or employee) of

an interscholastic athletic activity; nurses, licensed and/or non-licensed healthcare professionals serving on the Concussion Oversight Team; athletic trainers; game officials of an interscholastic athletic activity; and physicians serving on the Concussion Oversight Team.

11. Every two years, school personnel who work with students must complete an in-person or online training program on the management of asthma, the prevention of asthma symptoms, and emergency response in the school setting.
12. Training for school personnel to develop cultural competency, including understanding and reducing implicit racial bias.
13. For school personnel who work with hazardous or toxic materials on a regular basis, training on the safe handling and use of such materials.
14. For nurses, administrators, guidance counselors, teachers, persons employed by a local health department and assigned to a school, and persons who contract with the District to perform services in connection with a student's seizure action plan, training in the basics of seizure recognition, first aid, and appropriate emergency protocols.
15. For all District staff, annual sexual harassment prevention training.

The Superintendent shall develop protocols for administering youth suicide awareness and prevention education to staff consistent with Board policy [7:290](#), *Suicide and Depression Awareness and Prevention*.

LEGAL REF.:

Healthy, Hunger-Free Kids Act of 2010, [42 U.S.C. §1758b](#), [Pub.](#)

[L. 111-296](#), [7 C.F.R. Parts 210](#) and [235](#).

[105 ILCS 5/2-3.62](#), [5/10-20.17a](#), [5/10-20.61](#), [5/10-22.6\(c-5\)](#), [5/10-22.39](#), [5/10-23.12](#), [5/22-80\(h\)](#), and [5/24-5](#).

[105 ILCS 25/1.15](#), Interscholastic Athletic

Organization Act. [105 ILCS 150/25](#), Seizure

Smart School Act.

[105 ILCS 110/3](#), Critical Health Problems and Comprehensive Health

Education Act. [325 ILCS 5/4](#), Abused and Neglected Child Reporting Act.

[745 ILCS 49/](#), Good Samaritan Act.

[775 ILCS 5/2-109](#), Ill. Human Rights Act.

[23 Ill.Admin.Code §§ 22.20](#), [226.800](#), and [Part 525. 77 Ill.Admin.Code §527.800](#).

CROSS REF.: [3:40](#) (Superintendent), [3:50](#) (Administrative Personnel Other Than the Superintendent), [4:160](#) (Environmental Quality of Buildings and Grounds), [5:20](#) (Workplace Harassment Prohibited), [5:90](#) (Abused and Neglected Child Reporting), [5:120](#) (Employee Ethics; Conduct; and Conflict of Interest), [5:250](#) (Leaves of Absence), [6:15](#) (School Accountability), [6:20](#) (School Year Calendar and Day), [6:50](#) (School Wellness), [6:160](#) (English Learners), [7:10](#) (Equal Educational Opportunities), [7:20](#) (Harassment of Students Prohibited), [7:180](#) (Prevention of and Response to Bullying, Intimidation, and Harassment), [7:185](#) (Teen Dating Violence Prohibited), [7:270](#) (Administering Medicines to Students), [7:285](#) (Food Allergy Management Program), [7:290](#) (Suicide and Depression Awareness and Prevention), [7:305](#) (Student Athlete Concussions and Head Injuries)

Adopted: January 21, 2021 Scales Mound CUSD 211

Employee Ethics; Conduct; and Conflict of Interest

Professional and Appropriate Conduct

All District employees are expected to maintain high standards in their school relationships, to demonstrate integrity and honesty, to be considerate and cooperative, and to maintain professional and appropriate relationships with students, parents, staff members, and others. In addition, the *Code of Ethics for Illinois Educators*, adopted by the Illinois State Board of Education, is incorporated by reference into this policy.

Any employee who sexually harasses a student, willfully or negligently fails to report an instance of suspected child abuse or neglect as required by the Abused and Neglected Child Reporting Act ([325 ILCS 5/](#)), or otherwise violates an employee conduct standard will be subject to discipline up to and including dismissal.

Statement of Economic Interests

The following employees must file a "Statement of Economic Interests" as required by the Illinois Governmental Ethics Act:

1. Superintendent;
2. Building Principal;
3. Head of any department;
4. Any employee who, as the District's agent, is responsible for negotiating one or more contracts, including collective bargaining agreement(s), in the amount of \$1,000 or greater;
5. Hearing officer;
6. Any employee having supervisory authority for 20 or more employees; and
7. Any employee in a position that requires an administrative or a chief school business official endorsement.

Ethics and Gift Ban

Board policy [2:105](#), *Ethics and Gift Ban*, applies to all District employees. Students shall not be used in any manner for promoting a political candidate or issue.

Prohibited Interests; Conflict of Interest; and Limitation of Authority

In accordance with [Section 22-5](#) of the School Code, "no school officer or teacher shall be interested in the sale, proceeds, or profits of any book, apparatus, or furniture used or to be used in any school with which such officer or teacher may be connected," except when the employee is the author or developer of instructional materials listed with the Illinois State Board of Education and adopted for use by the Board. An employee having an interest in instructional materials must file an annual statement with the Board Secretary.

For the purpose of acquiring profit or personal gain, no employee shall act as an agent of the District nor shall an employee act as an agent of any business in any transaction with the District. This includes participation in the selection, award or administration of a contract supported by a federal award or State award governed by the Grant Accountability and Transparency Act (GATA) ([30 ILCS 708/](#)) when the employee has a real or apparent conflict of interest. A conflict of interest arises when an employee or any of the following individuals has a financial or other interest in the entity selected for the contract:

1. Any person that has a close personal relationship with an employee that may compromise or impair the employee's fairness and impartiality, including a member of the employee's immediate family or household; An employee's business partner; or

2. An entity that employs or is about to employ the employee or one of the individuals listed in one or two above.

Employees shall neither solicit nor accept gratuities, favors, or anything of monetary value from contractors, potential contractors, or parties to agreements or contracts. Situations in which the interest is not substantial or the gift is an unsolicited item of nominal value must comply with State law and Board policy [2:105](#), *Ethics and Gift Ban*.

Outside Employment

Employees shall not engage in any other employment or in any private business during regular working hours or at such other times as are necessary to fulfill appropriate assigned duties.

Incorporated by reference: 5:120-E (Exhibit - Code of Ethics for Illinois Educators) LEGAL REF.: [U.S. Constitution, First Amendment](#), [2 C.F.R. §200.318\(c\)\(1\)](#).

[5 ILCS 420/4A-101](#), Ill. Governmental Ethics Act.

[5 ILCS 430/](#), State Officials and Employee Ethics Act.

[30 ILCS 708/](#), Grant Accountability and Transparency Act.

[50 ILCS 135/](#), Local Governmental Employees Political Rights Act. [105 ILCS 5/10-22.39](#) and [5/22-5](#).

[325 ILCS 5/](#), Abused and Neglected Child Reporting Act. [775 ILCS 5/5A-102](#), Ill. Human Rights Act.

[23 Ill.Admin.Code Part 22](#), Code of Ethics for Illinois Educators.

[Pickering v. Board of Township H.S. Dist. 205](#), 391 U.S. 563 (1968).

[Garcetti v. Ceballos](#), 547 U.S. 410 (2006).

CROSS REF.: [2:105](#) (Ethics and Gift Ban), [4:60](#) (Purchases and Contracts), [5:100](#) (Staff Development Program), 5:125 (Personal Technology and Social Media; Usage and Conduct)

Adopted: January 21, 2021 Scales Mound CUSD 211

Scales Mound CUSD 211

5:130 General Personnel

Responsibilities Concerning Internal Information

District employees are responsible for maintaining: (1) the integrity and security of all internal information, and (2) the privacy of confidential records, including but not limited to: student school records, personnel records, and the minutes of, and material disclosed in, a closed School Board meeting. Internal information is any information, oral or recorded in electronic or paper format, maintained by the District or used by the District or its employees. The Superintendent or designee shall manage procedures for safeguarding the integrity, security, and, as appropriate, confidentiality of internal information.

LEGAL REF.: Family Educational and Privacy Rights Act, 20 U.S.C. §1232g.

Uses and Disclosures of Protected Health Information; General Rules, 45 C.F.R. §164.502.

III. Freedom of Information Act, 5 ILCS 140/.

Local Records Act, 50 ILCS 205/.

105 ILCS 10/.

Personnel Record Review Act, 820 ILCS 40/.

CROSS REF.: 2:140 (Communications To and From the Board), 2:250 (Access to District Public Records), 5:150 (Personnel Records), 7:340 (Student Records)

ADOPTED: July 16, 2012

Scales Mound CUSD 211

5:140 General Personnel

Solicitations by or from Staff

District employees shall not solicit donations or sales, nor shall they be solicited for donations or sales, on school grounds without prior approval from the Superintendent.

CROSS REF.: 8:90 (Parent Organizations and Booster Clubs)

ADOPTED: May 15, 2017

Scales Mound CUSD 211

5:150 General Personnel

Personnel Records

The Superintendent or designee shall manage the maintenance of personnel records in accordance with State and federal law and School Board policy. Records, as determined by the Superintendent, are retained for all employment applicants, employees, and former employees given the need for the District to document employment-related decisions, evaluate program and staff effectiveness, and comply with government recordkeeping and reporting requirements. Personnel records shall be maintained in the District's administrative office, under the Superintendent's direct supervision.

Access to personnel records is available as follows:

1. An employee will be given access to his or her personnel records according to State law and guidelines developed by the Superintendent.
2. An employee's supervisor or other management employee who has an employment or business-related reason to inspect the record is authorized to have access.
3. Anyone having the respective employee's written consent may have access.
4. Access will be granted to anyone authorized by State or federal law to have access.
5. All other requests for access to personnel information are governed by Board policy 2:250, *Access to District Public Records*.

The School District will only confirm position and dates of employment when requested for information about a District employee. An employee who would like the District to release additional information about their employment must submit a written request in writing to the Superintendent or designee.

LEGAL REF.: 745 ILCS 46/10.
820 ILCS 40/23 III.Admin.Code §1.660.

CROSS REF.: 2:250 (Access to District's Public Records), 7:340 (Student Records)

ADOPTED: September 19, 2016

CopyrightWorks Made for Hire

The Superintendent shall manage the development of instructional materials and computer programs by employees during the scope of their employment in accordance with State and federal laws and School Board policies. Whenever an employee is assigned to develop instructional materials and/or computer programs, or otherwise performs such work within the scope of his or her employment, it is assumed the District shall be the owner of the copyright.

Copyright Compliance

While staff members may use appropriate supplementary materials, it is each staff member's responsibility to abide by the District's copyright compliance procedures and to obey the copyright laws. The District is not responsible for any violations of the copyright laws by its staff or students. A staff member should contact the Superintendent or designee whenever the staff member is uncertain about whether using or copying material complies with the District's procedures or is permissible under the law, or wants assistance on when and how to obtain proper authorization. No staff member shall, without first obtaining the permission of the Superintendent or designee, install or download any program on a District-owned computer. At no time shall it be necessary for a District staff member to violate copyright laws in order to properly perform his or her duties.

Copyright Infringement; Designation of District Digital Millennium Copyright Act (DMCA) Agent

The employee listed below receives complaints about copyright infringement within the use of the District's online services. The Superintendent or designee will register this information with the federal Copyright Office as required by federal law.

District DMCA Agent:

Marybeth DeLaMar

Name

210 Main St.

Address

marybethdelamar@scalesmound.net

Email

815-845-2215

Telephone

LEGAL REF.: Federal Copyright Law of 1976, 17 U.S.C. §101 et seq. 105 ILCS 5/10-23.10.

CROSS REF.: 6:235 (Access to Electronic Networks)

ADOPTED: October 19, 2015

Terms and Conditions of Employment and DismissalSchool Year

Teachers shall work according to the school calendar adopted by the School Board, which shall have a minimum of 176 student attendance days and a minimum of 180 teacher work days, including teacher institute days. Teachers are not required to work on legal school holidays unless the District has followed applicable State law that allows it to hold school or schedule teachers' institutes, parent-teacher conferences, or staff development on the third Monday in January (the Birthday of Dr. Martin Luther King, Jr.); February 12 (the Birthday of President Abraham Lincoln); the first Monday in March (known as Casimir Pulaski's birthday); the second Monday in October (Columbus Day); and November 11 (Veterans' Day).

School Day

Teachers are required to work the school day adopted by the Board. Teachers employed for at least four hours per day shall receive a duty-free lunch equivalent to the student lunch period, or 30 minutes, whichever is longer.

The District accommodates employees who are nursing mothers according to provisions in State and federal law.

Planning Time

Please refer to the current "Professional Agreement between the Scales Mound Education Association and Scales Mound Community Unit District 211."

Salary

Teachers shall be paid according to the salaries fixed by the School Board, but in no case less than the minimum salary provided by the School Code. Teachers shall be paid at least monthly on a 10- or 12-month basis.

Assignments and Transfers

The Superintendent is authorized to make teaching, study hall, extra class duty, and extracurricular assignments. In order of priority, assignments shall be made based on the District's needs and best interests, employee qualifications, and employee desires.

Supervisory and Extracurricular Activities

Please refer to the current "Professional Agreement between the Scales Mound Education Association and Scales Mound Community Unit District 211."

School Social Worker Services Outside of District Employment

School social workers may not provide services outside of their District employment to any student(s) attending school in the District. *School social worker* has the meaning stated in [105 ILCS 5/14-1.09a](#).

Dismissal

The District will follow State law when dismissing a teacher.

Evaluation

The District's teacher evaluation system will be conducted under the plan developed pursuant to State law.

On an annual basis, the Superintendent will provide the School Board with a written report, which

outlines the results of the District's teacher evaluation system.

LEGAL REF.:

[105 ILCS 5/10-19](#), [5/10-19.05](#), [5/10-20.65](#), [5/14-1.09a](#), [5/22.4](#), [5/24-16.5](#), [5/24-2](#), [5/24-8](#), [5/24-9](#), [5/24-11](#),
[5/24-12](#), [5/24-21](#), [5/24A-1 through 24A-20](#).

[820 ILCS 260/1](#) *et seq.*

[23 Ill.Admin.Code Parts 50](#) (Evaluation of Educator Licensed Employees) and [51](#) (Dismissal of Tenured Teachers).

[Cleveland Bd. of Educ. v. Loudermill](#), 470 U.S.

532(1985). CROSS REF: [6:20](#) (School Year

Calendar and Day) Adopted: January 21, 2021

Scales Mound CUSD 211

Scales Mound CUSD 211

5:290 Educational Support Personnel

Employment Termination and Suspensions

Resignation

An employee is requested to provide two weeks' notice of a resignation. In most cases, resigning employees are permitted to work to their effective resignation date. A resignation notice cannot be revoked once given. An employee planning to retire should notify his or her supervisor at least two months before the retirement date.

Retirement

Please refer to the current “Agreement between Scales Mound Community Unit District 211 and Scales Mound Support Personnel.”

Non-RIF Dismissal

The District may terminate an at-will employee at any time. The Superintendent or supervisor may recommend an employee's discharge subject to the School Board's approval. This includes recommending a non-licensed employee for immediate dismissal for willful or negligent failure to report an instance of suspected child abuse or neglect as required by [325 ILCS 5/](#).

Reduction in Force and Recall

The Board may, as necessary or prudent, decide to decrease the number of educational support personnel or to discontinue some particular type of educational support service and, as a result of that action, dismiss or reduce the hours of one or more educational support employees. When making decisions concerning reduction in force and recall, the Board will follow [Sections 10-22.34c](#) (outsourcing non-instructional services) and [10-23.5](#) (procedures) of the School Code, to the extent they are applicable and not superseded by legislation or an applicable collective bargaining agreement.

Final Paycheck

A terminating employee's final paycheck will be adjusted for any unused, earned vacation credit. Employees are paid for all earned vacation. Terminating employees will receive their final pay on the next regular payday following the date of termination, except that an employee dismissed due to a reduction in force shall receive his or her final paycheck on or before the next regular pay date.

following the last day of employment.

Suspension

Except as provided below, the Superintendent is authorized to suspend an employee without pay as a disciplinary measure, during an investigation into allegations of misconduct, or pending a dismissal hearing whenever, in the Superintendent's judgment, the employee's presence is detrimental to the District. A disciplinary suspension shall be with pay (1) when the employee is exempt from the overtime, or (2) until an employee with an employment contract for a definite term is provided a notice and hearing according to the suspension policy for professional employees. Upon receipt of a recommendation from the Ill. Dept. Children and Family Services (DCFS) that the District remove an employee from his or her position when he or she is the subject of a pending DCFS investigation that relates to his or her employment with the District, the Board or Superintendent or designee, in consultation with the Board Attorney, will determine whether to:

1. Let the employee remain in his or her position pending the outcome of the investigation; or
2. Remove the employee as recommended, proceeding with:
 - a. A suspension with pay; or
 - b. A suspension without pay.

Any criminal conviction resulting from the investigation or allegations shall require the employee to repay to the District all compensation and the value of all benefits received by the employee during the suspension.

The Superintendent will notify the employee of this requirement when the employee is

suspended. LEGAL REF.:

[5 ILCS 430](#) *et seq.*

[105 ILCS 5/10-22.34c](#) and [5/10-23.5](#).

[325 ILCS 5/7.4](#)(c-10).

[820 ILCS 105/4a](#).

CROSS REF.: [5:90](#) (Abused and Neglected Child Reporting), [5:240](#) (Suspension), [5:270](#) (Employment At- Will, Compensation, and Assignment)

Adopted: February 18, 2021 Scales Mound CUSD 211

Scales Mound CUSD 211

6:235 Instruction

Access to Electronic Networks

Electronic networks, including the Internet, are a part of the District's instructional program in order to promote educational excellence by facilitating resource sharing, innovation, and communication. The Superintendent or designee shall develop an implementation plan for this policy and appoint a "system administrator."

The School District is not responsible for any information that may be lost, damaged, or unavailable when using the network, or for any information that is retrieved or transmitted via the Internet. Furthermore, the District will not be responsible for any unauthorized charges or fees resulting from access to the Internet.

Curriculum and Appropriate Online Behavior

The use of the District's electronic networks shall: (1) be consistent with the curriculum adopted by the

District as well as the varied instructional needs, learning styles, abilities, and developmental levels of the students, and (2) comply with the selection criteria for instructional materials and library resource center materials. As required by federal law and Board policy 6:60, *Curriculum Content*, students will be educated about appropriate online behavior, including but not limited to: (1) interacting with other individuals on social networking websites and in chat rooms, and (2) cyberbullying awareness and response. Staff members may, consistent with the Superintendent's implementation plan, use the Internet throughout the curriculum.

The District's electronic network is part of the curriculum and is not a public forum for general use.

Acceptable Use

All use of the District's electronic network must be (1) in support of education and/or research, and be in furtherance of the School Board's stated goal, or (2) for a legitimate business purpose that does not interfere with the District's goals and does not violate Unacceptable Use (including examples listed as a-m in the District's Authorization for Electronic Network Access, 6:235-AP1). Use is a privilege, not a right; academic work for courses always takes priority over any other use of the computer equipment. Students and staff members have no expectation of privacy in any material that is stored, transmitted, or received via the District's electronic network or District computers. General rules for behavior and communications apply when using electronic networks. The District's administrative procedure, *Acceptable Use of the District's Electronic Networks*, contains the appropriate uses, ethics, and protocol. Electronic communications and downloaded material, including files deleted from a user's account but not erased, may be monitored or read by school officials.

Internet Safety

Technology protection measures shall be used on each District computer with Internet access. They shall include a filtering device that protects against Internet access by both adults and minors to visual depictions that are (1) obscene, (2) pornographic, or (3) harmful or inappropriate for students, as defined by the Children's Internet Protection Act and as determined by the Superintendent or designee. The Superintendent or designee shall enforce the use of such filtering devices. An administrator, supervisor, or other authorized person may disable the filtering device for bona fide research or other lawful purpose, provided the person receives prior permission from the Superintendent or system administrator.

The Superintendent or designee shall include measures in this policy's implementation plan to address the following:

1. Ensure staff supervision of student access to online electronic networks,
2. Restrict student access to inappropriate matter as well as restricting access to harmful materials,
3. Ensure student and staff privacy, safety, and security when using electronic communications,
4. Restrict unauthorized access, including "hacking" and other unlawful activities, and
5. Restrict unauthorized disclosure, use, and dissemination of personal identification information, such as, names and addresses.

Authorization for Electronic Network Access

Each staff member must sign the *Authorization for Access to the District's Electronic Networks* as a condition for using the District's electronic network. Each student and his or her parent(s)/guardian(s) must sign the *Authorization* before being granted unsupervised use.

All users of the District's computers to access the Internet shall maintain the confidentiality of student records. Reasonable measures to protect against unreasonable access shall be taken before confidential student information is loaded onto the network.

The failure of any student or staff member to follow the terms of the District's administrative procedure, *Acceptable Use of the District's Electronic Networks*, or this policy, will result in the loss of privileges,

disciplinary action, and/or appropriate legal action.

LEGAL REF.: No Child Left Behind Act, 20 U.S.C. §6777.
 Children's Internet Protection Act, 47 U.S.C. §254(h) and (l).
 Enhancing Education Through Technology Act, 20 U.S.C §6751 et seq.
 47 C.F.R. Part 54, Subpart F, Universal Service Support for Schools and Libraries.
 720 ILCS 5/26.5.

CROSS REF.: 5:100 (Staff Development Program), 5:170 (Copyright for Publication or Sale of Instructional Materials and Computer Programs Developed by Employees), 6:40 (Curriculum Development), 6:60 (Curriculum Content), 6:210 (Instructional Materials), 6:230 (Library Resource Center), 6:260 (Complaints About Curriculum, Instructional Materials, and Programs), 7:130 (Student Rights and Responsibilities), 7:190 (Student Behavior), 7:310 (Restrictions on Publications; Elementary Schools), 7:315 (Restrictions on Publications; High Schools)

ADOPTED: July 16, 2012

Scales Mound CUSD 211

7:20 Students

Harassment of Students Prohibited

Bullying, Intimidation, and Harassment Prohibited

No person, including a District employee or agent, or student, shall harass, intimidate, or bully a student on the basis of actual or perceived: race; color; national origin; military status; unfavorable discharge status from military service; sex; sexual orientation; gender identity; gender-related identity or expression; ancestry; age; religion; physical or mental disability; order of protection status; status of being homeless; actual or potential marital or parental status, including pregnancy; association with a person or group with one or more of the aforementioned actual or perceived characteristics; or any other distinguishing characteristic. The District will not tolerate harassing, intimidating conduct, or bullying whether verbal, physical, or visual, that affects tangible benefits of education, that unreasonably interferes with a student's educational performance, or that creates an intimidating, hostile, or offensive educational environment. Examples of prohibited conduct include name-calling, using derogatory slurs, stalking, causing psychological harm, threatening or causing physical harm, threatened or actual destruction of property, or wearing or possessing items depicting or implying hatred or prejudice of one of the characteristics stated above.

Sexual Harassment Prohibited

Sexual harassment of students is prohibited. Any person, including a district employee or agent, or student, engages in sexual harassment whenever he or she makes sexual advances, requests sexual favors, and/or engages in other verbal or physical conduct, of a sexual or sex-based nature, imposed on the basis of sex, that:

1. denies or limits the provision of educational aid, benefits, services, or treatment; or that makes such conduct a condition of a student's academic status; or
2. has the purpose or effect of:
 - a. substantially interfering with a student's educational environment;
 - b. creating an intimidating, hostile, or offensive educational environment;
 - c. depriving a student of educational aid, benefits, services, or treatment; or
 - d. making submission to or rejection of such conduct the basis for academic decisions affecting a student.

The terms "intimidating," "hostile," and "offensive" include conduct that has the effect of humiliation, embarrassment, or discomfort. Examples of sexual harassment include touching, crude jokes or pictures, discussions of sexual experiences, teasing related to sexual characteristics, and spreading rumors related to a person's alleged sexual activities.

Making a Complaint

Students are encouraged to report claims or incidences of bullying, harassment, sexual harassment, or any other prohibited conduct to the Nondiscrimination Coordinator, Building Principal, Assistant Building Principal, Dean of Students, a Complaint Manager, or any staff member with whom the student is comfortable speaking. A student may choose to report to a person of the student's same sex.

An allegation that a student was a victim of any prohibited conduct perpetrated by school personnel, including a school vendor or volunteer, shall be processed and reviewed according to policy [5:90](#), *Abused and Neglected Child Reporting*, in addition to any response required by this policy. The Superintendent shall make available the names, addresses, and telephone numbers of the District's current Nondiscrimination Coordinator and Complaint Managers. At least one of these individuals will be female, and at least one will be male.

Nondiscrimination Coordinator:

District Superintendent
210 Main St., Scales Mound, IL 61075
marybethdelamar@scalesmound.net
815-845-2215

Complaint Managers:

Dr. Marybeth DeLaMar, Superintendent
Dr. Matt Wiederholt, Principal

210 Main St., Scales Mound, IL 61075

marybethdelamar@scalesmound.net

815-845-2215, ext. 113

mattwiederholt@scalesmound.net

815-845-2215, ext. 112

The Superintendent shall use reasonable measures to inform staff members and students of this policy by including:

1. For students, age-appropriate information about the contents of this policy in the District's student handbook(s), on the District's website, and, if applicable, in any other areas where policies, rules, and standards of conduct are otherwise posted in each school.
2. For staff members, this policy in the appropriate employee handbook(s), if applicable, and/or in any other areas where policies, rules, and standards of conduct are otherwise made available to staff.

Investigation Process

Supervisors, Building Principals, or administrators who receive a report or complaint of harassment must promptly forward the report or complaint to the Nondiscrimination Coordinator or a Complaint Manager. A supervisor or administrator who fails to promptly comply may be disciplined, up to and including discharge.

Reports and complaints of harassment will be confidential to the greatest extent practicable, subject to the District's duty to investigate and maintain an educational environment that is productive, respectful, and free of unlawful discrimination, including harassment.

The District shall investigate alleged harassment of students when the Nondiscrimination Coordinator or a Complaint Manager becomes aware of an allegation, regardless of whether a written report or complaint is filed.

Alleged Incidents of Sexual Abuse

An *alleged incident of sexual abuse* is an incident of sexual abuse of a child, as defined in [720 ILCS 5/11- 9.1A\(b\)](#), that is alleged to have been perpetrated by school personnel, including a school vendor or volunteer, that occurred: on school grounds during a school activity; or outside of school grounds or not during a school activity.

Any complaint alleging an incident of sexual abuse shall be processed and reviewed according to policy [5:90](#), *Abused and Neglected Child Reporting*, in addition to any response required by this policy

Enforcement

Any District employee who is determined, after an investigation, to have engaged in conduct prohibited by this policy will be subject to disciplinary action up to and including discharge. Any District student who is determined, after an investigation, to have engaged in conduct prohibited by this policy will be subject to disciplinary action, including but not limited to, suspension and expulsion consistent with the behavior policy. Any person making a knowingly false accusation regarding prohibited conduct will likewise be subject to disciplinary action up to and including discharge, with regard to employees, or suspension and expulsion, with regard to students.

LEGAL REF.:

[20 U.S.C. §1681](#) *et seq.*, Title IX of the Educational

Amendments of 1972. [34 C.F.R. Part 106](#).

[105 ILCS 5/10-20.12](#), [10-22.5](#), [5/27-1](#), and [5/27-23.7](#).

[775 ILCS 5/1-101](#) *et seq.*, Illinois Human Rights Act. [23 Ill.Admin.Code §1.240](#) and [Part 200](#).

[Davis v. Monroe County Bd.of Educ.](#), 526 U.S. 629 (1999).

[Franklin v. Gwinnett Co. Public Schs.](#), 503 U.S. 60 (1992).

[Gebser v. Lago Vista Independent Sch. Dist.](#), 524 U.S. 274 (1998).

[West v. Derby Unified Sch. Dist. No. 260](#), 206 F.3d 1358 (10th Cir. 2000).

CROSS REF.: [2:260](#) (Uniform Grievance Procedure), [5:20](#) (Workplace Harassment Prohibited), [5:90](#) (Abused and Neglected Child Reporting), [7:10](#) (Equal Educational Opportunities), [7:180](#) (Prevention of and Response to Bullying, Intimidation, and Harassment), [7:185](#) (Teen Dating Violence Prohibited), [7:190](#) (Student Behavior), [7:240](#) (Conduct Code for Participants in Extracurricular Activities)

Adopted: January 21, 2021 Scales Mound CUSD 211

Student Behavior

The goals and objectives of this policy are to provide effective discipline practices that: (1) ensure the

safety and dignity of students and staff; (2) maintain a positive, weapons-free, and drug-free learning environment; (3) keep school property and the property of others secure; (4) address the causes of a student's misbehavior and provide opportunities for all individuals involved in an incident to participate in its resolution; and (5) teach students positive behavioral skills to become independent, self-disciplined citizens in the school community and society.

When and Where Conduct Rules Apply

A student is subject to disciplinary action for engaging in *prohibited student conduct*, as described in the section with that name below, whenever the student's conduct is reasonably related to school or school activities, including, but not limited to:

1. On, or within sight of, school grounds before, during, or after school hours or at any time;
2. Off school grounds at a school-sponsored activity or event, or any activity or event that bears a reasonable relationship to school;
3. Traveling to or from school or a school activity, function, or event; or
4. Anywhere, if the conduct interferes with, disrupts, or adversely affects the school environment, school operations, or an educational function, including, but not limited to, conduct that may reasonably be considered to: (a) be a threat or an attempted intimidation of a staff member; or (b) endanger the health or safety of students, staff, or school property.

Prohibited Student Conduct

The school administration is authorized to discipline students for gross disobedience or misconduct, including but not limited to:

1. Using, possessing, distributing, purchasing, or selling tobacco or nicotine materials, including without limitation, electronic cigarettes.
2. Using, possessing, distributing, purchasing, or selling alcoholic beverages. Students who are under the influence of an alcoholic beverage are not permitted to attend school or school functions and are treated as though they had alcohol in their possession.
3. Using, possessing, distributing, purchasing, selling, or offering for sale:
 - a. Any illegal drug or controlled substance, or cannabis (including medical cannabis, marijuana, and hashish).
 - b. Any anabolic steroid unless it is being administered in accordance with a physician's or licensed practitioner's prescription.
 - c. Any performance-enhancing substance on the Illinois High School Association's most current banned substance list unless administered in accordance with a physician's or licensed practitioner's prescription.
 - d. Any prescription drug when not prescribed for the student by a physician or licensed practitioner, or when used in a manner inconsistent with the prescription or prescribing physician's or licensed practitioner's instructions. The use or possession of medical cannabis, even by a student for whom medical cannabis has been prescribed, is prohibited.
 - e. Any inhalant, regardless of whether it contains an illegal drug or controlled substance: (a) that a student believes is, or represents to be capable of, causing intoxication, hallucination, excitement, or dulling of the brain or nervous system; or (b) about which the student engaged in behavior that would lead a reasonable person to believe that the student intended the inhalant to cause intoxication, hallucination, excitement, or dulling of the brain or nervous system. The prohibition in this section does not apply to a student's use of asthma or other legally prescribed inhalant medications.
 - f. Any substance inhaled, injected, smoked, consumed, or otherwise ingested or absorbed with the intention of causing a physiological or psychological change in the body, including without limitation, pure caffeine in tablet or powdered form.

- g. "Look-alike" or counterfeit drugs, including a substance that is not prohibited by this policy, but one: (a) that a student believes to be, or represents to be, an illegal drug, controlled substance, or other substance that is prohibited by this policy; or (b) about which a student engaged in behavior that would lead a reasonable person to believe that the student expressly or impliedly represented to be an illegal drug, controlled substance, or other substance that is prohibited by this policy.
- h. Drug paraphernalia, including devices that are or can be used to: (a) ingest, inhale, or inject cannabis or controlled substances into the body; and (b) grow, process, store, or conceal cannabis or controlled substances.

Students who are under the influence of any prohibited substance are not permitted to attend school or school functions and are treated as though they had the prohibited substance, as applicable, in their possession.

- 4. Using, possessing, controlling, or transferring a "weapon" as that term is defined in the Weapons section of this policy, or violating the Weapons section of this policy.
- 5. Using or possessing an electronic paging device. Using a cellular telephone, video recording device, personal digital assistant (PDA), or other electronic device in any manner that disrupts the educational environment or violates the rights of others, including using the device to take photographs in locker rooms or bathrooms, cheat, or otherwise violate student conduct rules. Prohibited conduct specifically includes, without limitation, creating, sending, sharing, viewing, receiving, or possessing an indecent visual depiction of oneself or another person through the use of a computer, electronic communication device, or cellular phone. Unless otherwise banned under this policy or by the Building Principal, all electronic devices must be kept powered-off and out-of-sight during the regular school day unless: (a) the supervising teacher grants permission; (b) use of the device is provided in a student's individualized education program (IEP); (c) it is used during the student's lunch period, or (d) it is needed in an emergency that threatens the safety of students, staff, or other individuals.
- 6. Using or possessing a laser pointer unless under a staff member's direct supervision and in the context of instruction.
- 7. Disobeying rules of student conduct or directives from staff members or school officials. Examples of disobeying staff directives include refusing a District staff member's request to stop, present school identification, or submit to a search.
- 8. Engaging in academic dishonesty, including cheating, intentionally plagiarizing, wrongfully giving or receiving help during an academic examination, altering report cards, and wrongfully obtaining test copies or scores.
- 9. Engaging in hazing or any kind of bullying or aggressive behavior that does physical or psychological harm to a staff person or another student, or urging other students to engage in such conduct. Prohibited conduct specifically includes, without limitation, any use of violence, intimidation, force, noise, coercion, threats, stalking, harassment, sexual harassment, public humiliation, theft or destruction of property, retaliation, hazing, bullying, bullying using a school computer or a school computer network, or other comparable conduct.
- 10. Engaging in any sexual activity, including without limitation, offensive touching, sexual harassment, indecent exposure (including mooning), and sexual assault. This does not include the non-disruptive: (a) expression of gender or sexual orientation or preference, or (b) display of affection during non-instructional time.
- 11. Teen dating violence, as described in Board policy 7:185, *Teen Dating Violence Prohibited*.
- 12. Causing or attempting to cause damage to, or stealing or attempting to steal, school property or another person's personal property.
- 13. Entering school property or a school facility without proper authorization.
- 14. In the absence of a reasonable belief that an emergency exists, calling emergency responders (such as calling 911); signaling or setting off alarms or signals indicating the presence of an emergency; or indicating the presence of a bomb or explosive device on school grounds, school bus, or at any school activity.

15. Being absent without a recognized excuse; State law and School Board policy regarding truancy control will be used with chronic and habitual truants.
16. Being involved with any public school fraternity, sorority, or secret society, by: (a) being a member; (b) promising to join; (c) pledging to become a member; or (d) soliciting any other person to join, promise to join, or be pledged to become a member.
17. Being involved in gangs or gang-related activities, including displaying gang symbols or paraphernalia.
18. Violating any criminal law, including but not limited to, assault, battery, arson, theft, gambling, eavesdropping, vandalism, and hazing.
19. Making an explicit threat on an Internet website against a school employee, a student, or any school-related personnel if the Internet website through which the threat was made is a site that was accessible within the school at the time the threat was made or was available to third parties who worked or studied within the school grounds at the time the threat was made, and the threat could be reasonably interpreted as threatening to the safety and security of the threatened individual because of his or her duties or employment status or status as a student inside the school.
20. Operating an unmanned aircraft system (UAS) or drone for any purpose on school grounds or at any school event unless granted permission by the Superintendent or designee.
21. Engaging in any activity, on or off campus, that interferes with, disrupts, or adversely affects the school environment, school operations, or an educational function, including but not limited to, conduct that may reasonably be considered to: (a) be a threat or an attempted intimidation of a staff member; or (b) endanger the health or safety of students, staff, or school property.

For purposes of this policy, the term "possession" includes having control, custody, or care, currently or in the past, of an object or substance, including situations in which the item is: (a) on the student's person; (b) contained in another item belonging to, or under the control of, the student, such as in the student's clothing, backpack, or automobile; (c) in a school's student locker, desk, or other school property; or (d) at any location on school property or at a school-sponsored event.

Efforts, including the use of positive interventions and supports, shall be made to deter students, while at school or a school-related event, from engaging in aggressive behavior that may reasonably produce physical or psychological harm to someone else. The Superintendent or designee shall ensure that the parent/guardian of a student who engages in aggressive behavior is notified of the incident. The failure to provide such notification does not limit the Board's authority to impose discipline, including suspension or expulsion, for such behavior.

No disciplinary action shall be taken against any student that is based totally or in part on the refusal of the student's parent/guardian to administer or consent to the administration of psychotropic or psychostimulant medication to the student.

Disciplinary Measures

School officials shall limit the number and duration of expulsions and out-of-school suspensions to the greatest extent practicable, and, where practicable and reasonable, shall consider forms of non-exclusionary discipline before using out-of-school suspensions or expulsions. School personnel shall not advise or encourage students to drop out voluntarily due to behavioral or academic difficulties. Potential disciplinary measures include, without limitation, any of the following:

1. Notifying parent(s)/guardian(s).
2. Disciplinary conference.
3. Withholding of privileges.
4. Temporary removal from the classroom.
5. Return of property or restitution for lost, stolen, or damaged property.

6. In-school suspension. The Building Principal or designee shall ensure that the student is properly supervised.
7. After-school study or Saturday study provided the student's parent/guardian has been notified. If transportation arrangements cannot be agreed upon, an alternative disciplinary measure must be used. The student must be supervised by the detaining teacher or the Building Principal or designee.
8. Community service with local public and nonprofit agencies that enhances community efforts to meet human, educational, environmental, or public safety needs. The District will not provide transportation. School administration shall use this option only as an alternative to another disciplinary measure, giving the student and/or parent/guardian the choice.
9. Seizure of contraband; confiscation and temporary retention of personal property that was used to violate this policy or school disciplinary rules.
10. Suspension of bus riding privileges in accordance with Board policy 7:220, *Bus Conduct*.
11. Out-of-school suspension from school and all school activities in accordance with Board policy 7:200, *Suspension Procedures*. A student who has been suspended shall also be restricted from being on school grounds and at school activities.
12. Expulsion from school and all school activities for a definite time period not to exceed 2 calendar years in accordance with Board policy 7:210, *Expulsion Procedures*. A student who has been expelled shall also be restricted from being on school grounds and at school activities.
13. Transfer to an alternative program if the student is expelled or otherwise qualifies for the transfer under State law. The transfer shall be in the manner provided in Article 13A or 13B of the School Code.
14. Notifying juvenile authorities or other law enforcement whenever the conduct involves criminal activity, including but not limited to, illegal drugs (controlled substances), "look-alikes," alcohol, or weapons or in other circumstances as authorized by the reciprocal reporting agreement between the District and local law enforcement agencies.

The above list of disciplinary measures is a range of options that will not always be applicable in every case. In some circumstances, it may not be possible to avoid suspending or expelling a student because behavioral interventions, other than a suspension and expulsion, will not be appropriate and available, and the only reasonable and practical way to resolve the threat and/or address the disruption is a suspension or expulsion.

Corporal punishment is prohibited. Corporal punishment is defined as slapping, paddling, or prolonged maintenance of students in physically painful positions, or intentional infliction of bodily harm. Corporal punishment does not include reasonable force as needed to maintain safety for students, staff, or other persons, or for the purpose of self-defense or defense of property.

Weapons

A student who is determined to have brought one of the following objects to school, any school-sponsored activity or event, or any activity or event that bears a reasonable relationship to school shall be expelled for a period of at least one calendar year but not more than 2 calendar years:

1. A firearm, meaning any gun, rifle, shotgun, or weapon as defined by Section 921 of Title 18 of the United States Code (18 U.S.C. § 921), firearm as defined in Section 1.1 of the Firearm Owners Identification Card Act (430 ILCS 65/), or firearm as defined in Section 24-1 of the Criminal Code of 1961 (720 ILCS 5/24-1).
2. A knife, brass knuckles, or other knuckle weapon regardless of its composition, a billy club, or any other object if used or attempted to be used to cause bodily harm, including "look alikes" of any firearm as defined above.

The expulsion requirement under either paragraph 1 or 2 above may be modified by the Superintendent, and the Superintendent's determination may be modified by the Board on a case-by-case basis. The Superintendent or designee may grant an exception to this policy, upon the prior request of an adult

supervisor, for students in theatre, cooking, ROTC, martial arts, and similar programs, whether or not school-sponsored, provided the item is not equipped, nor intended, to do bodily harm.

This policy's prohibitions concerning weapons apply regardless of whether: (1) a student is licensed to carry a concealed firearm, or (2) the Board permits visitors, who are licensed to carry a concealed firearm, to store a firearm in a locked vehicle in a school parking area.

Re-Engagement of Returning Students

The Superintendent or designee shall maintain a process to facilitate the re-engagement of students who are returning from an out-of-school suspension, expulsion, or an alternative school setting. The goal of re-engagement shall be to support the student's ability to be successful in school following a period of exclusionary discipline and shall include the opportunity for students who have been suspended to complete or make up work for equivalent academic credit.

Required Notices

A school staff member shall immediately notify the office of the Building Principal in the event that he or she: (1) observes any person in possession of a firearm on or around school grounds; however, such action may be delayed if immediate notice would endanger students under his or her supervision, (2) observes or has reason to suspect that any person on school grounds is or was involved in a drug-related incident, or (3) observes a battery committed against any staff member. Upon receiving such a report, the Building Principal or designee shall immediately notify the local law enforcement agency, State Police, and any involved student's parent/guardian. "School grounds" includes modes of transportation to school activities and any public way within 1000 feet of the school, as well as school property itself.

Delegation of Authority

Each teacher, and any other school personnel when students are under his or her charge, is authorized to impose any disciplinary measure, other than suspension, expulsion, corporal punishment, or in-school suspension, that is appropriate and in accordance with the policies and rules on student discipline.

Teachers, other certificated [licensed] educational employees, and other persons providing a related service for or with respect to a student, may use reasonable force as needed to maintain safety for other students, school personnel, or other persons, or for the purpose of self-defense or defense of property. Teachers may temporarily remove students from a classroom for disruptive behavior.

The Superintendent, Building Principal, Assistant Building Principal, or Dean of Students is authorized to impose the same disciplinary measures as teachers and may suspend students guilty of gross disobedience or misconduct from school (including all school functions) and from riding the school bus, up to 10 consecutive school days, provided the appropriate procedures are followed. The Board may suspend a student from riding the bus in excess of 10 school days for safety reasons.

Student Handbook

The Superintendent, with input from the parent-teacher advisory committee, shall prepare disciplinary rules implementing the District's disciplinary policies. These disciplinary rules shall be presented annually to the Board for its review and approval.

A student handbook, including the District disciplinary policies and rules, shall be distributed to the students' parents/guardians within 15 days of the beginning of the school year or a student's enrollment.

LEGAL REF.: Gun-Free Schools Act, 20 U.S.C. §7151 et seq.

Pro-Children Act of 1994, 20 U.S.C. §6081.

410 ILCS 130/, Compassionate Use of Medical Cannabis Pilot Program.

410 ILCS 647/, Powdered Caffeine Control and Education Act.

430 ILCS 66/, Firearm Concealed Carry Act.

105 ILCS 5/10-20.5b, 5/10-20.14, 5/10-20.28, 5/10-20.36, 5/10-21.7, 5/10-21.10, 5/10-

22.6, 5/10-27.1A, 5/10-27.1B, 5/24-24, 5/26-12, 5/27-23.7, 5/31-3, and 110/3.10.

23 Ill.Admin.Code §1.280.

CROSS REF.: 2:150 (Committees), 2:240 (Board Policy Development), 5:230 (Maintaining Student Discipline), 6:110 (Programs for Students At Risk of Academic Failure and/or Dropping Out of School and Graduation Incentives Program), 7:70 (Attendance and Truancy), 7:130 (Student Rights and Responsibilities), 7:140 (Search and Seizure), 7:150 (Agency and Police Interviews), 7:160 (Student Appearance), 7:170 (Vandalism), 7:180 (Prevention of and Response to Bullying, Intimidation, and Harassment), 7:185 (Teen Dating Violence Prohibited), 7:200 (Suspension Procedures), 7:210 (Expulsion Procedures), 7:220 (Bus Conduct), 7:230 (Misconduct by Students with Disabilities), 7:240 (Conduct Code for Participants in Extracurricular Activities), 7:270 (Administering Medicines to Students), 7:310 (Restrictions on Publications; Elementary Schools), 7:315 (Restrictions on Publications; High Schools), 8:30 (Visitors to and Conduct on School Property) ADOPTED: May 16, 2016

Scales Mound CUSD 211

7:340 Students

Student Records

School student records are confidential. Information from them shall not be released other than as provided by law. A school student record is any writing or other recorded information concerning a student and by which a student may be identified individually that is maintained by a school or at its direction by a school employee, regardless of how or where the information is stored, except as provided in State or federal law as summarized below:

1. Records kept in a staff member's sole possession.
2. Records maintained by law enforcement officers working in the school.
3. Video and other electronic recordings (including without limitation, electronic recordings made on school buses) that are created in part for law enforcement, security, or safety reasons or purposes. The content of these recordings may become part of a school student record to the extent school officials create, use, and maintain this content, or it becomes available to them by law enforcement officials, for disciplinary or special education purposes regarding a particular student.
4. Any information, either written or oral, received from law enforcement officials concerning a student less than the age of 17 years who has been arrested or taken into custody.

State and federal law grant students and parent(s)/guardian(s) certain rights, including the right to inspect, copy, and challenge school student records. The information contained in school student records shall be kept current, accurate, clear and relevant. All information maintained concerning a student receiving special education services shall be directly related to the provision of services to that child. The District may release directory information as permitted by law, but parent(s)/guardian(s) shall have the right to object to the release of information regarding their child. However, the District will comply with an *ex parte* court order requiring it to permit the U.S. Attorney General or designee to have access to a student's school records without notice to, or the consent of, the students' parent(s)/guardian(s).

The Superintendent shall fully implement this policy and designate an *official records custodian* for each school who shall maintain and protect the confidentiality of school student records, inform staff members of this policy, and inform students and their parents/guardians of their rights regarding school student records. Upon request, the District discloses school student records without consent to officials of another school district in which a student has enrolled or intends to enroll, as well as to any person as specifically required by State or federal law.

LEGAL REF.: Chicago Tribune Co. v. Chicago Bd. of Ed., 773 N.E.2d 674 (Ill.App.1, 2002).
Owasso I.S.D. No. I-011 v. Falvo, 122 S.Ct. 934 (2002).
 Family Educational Rights and Privacy Act, 20 U.S.C. §1232g; 34 C.F.R. Part 99.
 Children's Privacy Protection and Parental Empowerment Act, 325 ILCS 17/.
 105 ILCS 5/10-20.21b, 20.37, 20.40, 5/14-1.01 et seq., and 10/50 ILCS 205/7.
 750 ILCS 5/602.11.
 23 Ill.Admin.Code Parts 226 and 375.

CROSS REF.: 7:15 (Student and Family Privacy Rights), 7:220 (Bus Conduct)

ADOPTED: December 21, 2015

Scales Mound CUSD 211

8:30 Community Relations

Conduct on School Property

The following definitions apply to this policy:

School property - District and school buildings, grounds, and parking areas; vehicles used for school purposes; and any location used for a School Board meeting, school athletic event, or other school- sponsored or school-sanctioned events or activities.

Visitor - Any person other than an enrolled student or District employee.

All visitors to school property are required to report to the Building Principal's office and receive permission to remain on school property. All visitors must sign a visitors' log, show identification, and wear a visitor's badge. When leaving the school, visitors must return their badge. On those occasions when large groups of parents/guardians, friends, and/or community members are invited onto school property or when community members are attending Board meetings, visitors are not required to sign in but must follow school officials' instructions. Persons on school property without permission will be directed to leave and may be subject to criminal prosecution.

Requests to access a school building, facility, and/or educational program, or to interview personnel or a student for purposes of assessing the student's special education needs, should be made at the appropriate building. Access shall be facilitated according to guidelines from the Superintendent or designee.

The School District expects mutual respect, civility, and orderly conduct among all people on school property or at a school event. No person on school property or at a school event (including visitors, students, and employees) shall perform any of the following acts:

1. Strike, injure, threaten, harass, or intimidate a staff member, Board member, sports official or coach, or any other person.
2. Behave in an unsportsmanlike manner, or use vulgar or obscene language.
3. Unless specifically permitted by State law, possess a weapon, any object that can reasonably be considered a weapon or looks like a weapon, or any dangerous device.
4. Damage or threaten to damage another's property.
5. Damage or deface School District property.
6. Violate any Illinois law, or town or county ordinance.
7. Smoke or otherwise use tobacco products.
8. Distribute, consume, use, possess, or be impaired by or under the influence of an alcoholic beverage, cannabis, other lawful product, or illegal drug.
9. Be present when the person's alcoholic beverage, cannabis, other lawful product, or illegal drug consumption is detectable, regardless of when and/or where the use occurred.

10. Use or possess medical cannabis, unless he or she has complied with policy [7:270](#), *Administering Medicines to Students*, implementing *Ashley's Law*.
11. Impede, delay, or otherwise interfere with the orderly conduct of the District's educational program or any other activity occurring on school property.
12. Enter upon any portion of school premises at any time for purposes other than those that are lawful and authorized by the School Board.
13. Operate a motor vehicle: (a) in a risky manner, (b) in excess of 20 miles per hour, or (c) in violation of an authorized District employee's directive.
14. Engage in any risky behavior, including roller-blading, roller-skating, or skateboarding.
15. Violate other District policies or regulations, or a directive from an authorized security officer or District employee.
16. Engage in any conduct that interferes with, disrupts, or adversely affects the District or a School function.

"School property" means school buildings, vehicles used for school purposes, and school grounds.

Convicted Child Sex Offender

State law prohibits a child sex offender from being present on school property or loitering within 500 feet of school property when persons under the age of 18 are present, unless the offender meets either of the following two exceptions:

1. The offender is a parent/guardian of a student attending the school and has notified the Building Principal of his or her presence at the school for the purpose of: (i) attending a conference with school personnel to discuss the progress of his or her child academically or socially, (ii) participating in child review conferences in which evaluation and placement decisions may be made with respect to his or her child regarding special education services, or (iii) attending conferences to discuss other student issues concerning his or her child such as retention and promotion; or
2. The offender received permission to be present from the Board, Superintendent, or Superintendent's designee. If permission is granted, the Superintendent or Board President shall provide the details of the offender's upcoming visit to the Building Principal.

In all cases, the Superintendent, or designee who is a certified employee, shall supervise a child sex offender whenever the offender is in a child's vicinity.

Enforcement

Any staff member may request identification from any person on school grounds or in any school building; refusal to provide such information is a criminal act. The Building Principal or designee shall seek the immediate removal of any person who refuses to provide requested identification.

As circumstances warrant, the District's administrators shall take appropriate action to enforce this policy. Violations will be handled as follows:

Anyone observing a student violating this policy shall notify the Building Principal where the student is enrolled and the Principal shall take whatever action is appropriate under the student conduct code. The supervisor of any employee violating this policy shall take whatever action is appropriate according to personnel rules and bargaining agreements, if any.

Anyone observing a parent/guardian or other person violating this policy shall immediately notify the Building Principal or designee. The Principal or designee will request that the person act civilly or otherwise refrain from the prohibited conduct. If the person persists with uncivil or prohibited behavior, the principal shall request that the person immediately leave school property and may contact law enforcement, if appropriate.

If a child sex offender violates this policy, school officials shall immediately contact law enforcement.

Any person who engages in conduct prohibited by this policy may be ejected from school property. The person is also subject to being denied admission to school events or meetings for up to one calendar year.

Procedures to Deny Future Admission to School Events or Meetings

Before any person may be denied admission to school events or meetings as provided in this policy, the person has a right to a hearing before the Board. The Superintendent may refuse the person admission pending such hearing. The Superintendent or designee must provide the person with a hearing notice,

delivered or sent by certified mail with return receipt requested, at least 10 days before the Board hearing date. The hearing notice must contain:

1. The date, time, and place of the Board hearing,
2. A description of the prohibited conduct,
3. The proposed time period that admission to school events will be denied, and
4. Instructions on how to waive a hearing. LEGAL REF.:

Nuding v. Cerro Gordo Community Unit School Dist., 313 Ill. App.3d 344 (4th Dist.

2000). [20 U.S.C. §7181](#) *et seq.*, Pro-Children Act of 1994.

[105 ILCS 5/10-20.5b](#), [5/22-33](#), [5/24-24](#), [5/24-25](#), and [5/27-23.7\(a\)](#).

[410 ILCS 130/](#), Compassionate Use of Medical Cannabis Program Act. [430](#)

[ILCS 66/](#), Firearm Concealed Carry Act.

[410 ILCS 705/](#), Cannabis Tax and Regulation Act:

[72 ILCS 5/11-9.3](#).

CROSS REF.: [4:170](#) (Safety), [5:50](#) (Drug- and Alcohol-Free Workplace; E-Cigarette, Tobacco, and Cannabis Prohibition), [6:120](#) (Education of Children with Disabilities), [6:250](#) (Community Resource Persons and Volunteers), [7:190](#) (Student Behavior), [7:270](#) (Administering Medicines to Students), [8:20](#) (Community Use of School Facilities),

Adopted: January 21, 2021 Scales Mound CUSD 211

Appendix

B: Forms

•	Section I	Page 3	Employee Absence Form
•	Section III	Page 6	Accident Report
•	Section IV	Page 6	Activity Application/Request Form
•		Section IV	Page 6 Activities Deposit Form
•		Section XX	Page 12 Disciplinary Notice
•		Section XXX	Page 16 Request to Use District Equipment
•		Section XXXIII	Page 16 Extra Duty Report
•		Section XXXVI	Page 17 Permit to Attend Event
•		Section XXXVI	Page 17 Activity or Field Trip Request Form
•		Section XXXVI	Page 17 Request for Addition to School Calendar and/or Transportation Form
•	Section XLII	Page 19	Classroom Sign-out Form
•	Section LII	Page 21	Maintenance Request Form
•	Section XLVIII	Page 21	Internal Substitute Report
•	Section LXXX	Page 27	Facilities Use Form

S.M.S. EMPLOYEE ABSENCE FORM

This form must be turned into the Principal and forwarded to the Superintendent for approval. This must be done upon returning to work. Requests for Personal Leave must be submitted at least one(1) week in advance, or for Bereavement as soon as possible.

Name Employee: _____

Today's Date: _____ Date(s) of absence _____

Full Day: _____ Half Day: _____ Quarter Day: _____ Total Day(s): _____

PLEASE CHECK ONE OF THE FOLLOWING:

Personal Illness: _____	Family Illness: _____	Personal Leave: _____
Other: _____	Bereavement: _____	Dock Day: _____
Jury Duty: _____	Vacation: _____	Comp. Time: _____
Workshops or Professional Leave: _____	Field Trip: _____	Medical Appt.: _____
		Family Leave: _____

Place of meeting _____

Type of meeting _____

Benefit to the District _____

Registration Fees paid: Yes _____ No _____ in the amount of _____

Attach workshop information. If transportation is needed please attach transportation request form.

Name of substitute: _____

Signature of Employee

Date

Approved: _____

Disapproved: _____

Signature of Principal

Date

Approved: _____

Disapproved: _____

Signature of Superintendent

Date

Superintendent's - White
Bookkeeper - Yellow

Employee's Copy - Gold
File - Pink

ACCIDENT REPORT

Name of Injured _____

Date of Report _____ Date of Accident _____

Home Address _____ Phone _____

Age _____ Sex _____ Name of Parents/Guardian _____

Place of Accident: School Building _____ School Grounds _____

To or From School _____ Elsewhere _____

Was Teacher Present? _____ Teacher's Name _____

Was Family Notified? _____ How? _____ What Time? _____ By Whom? _____

Nature of Accident (Specify Part of Body Injured) _____

Description of Accident _____

First Aid Given By _____ Where? _____

Where Taken After Accident _____

Physician _____ Address _____

Witnesses to Accident _____

Remarks: (Recommendations for preventing other accidents of this type)

Signature of Person Filling Out This Report _____

Administrative Review _____ Date _____

ACTIVITY APPLICATION/REQUEST FORM

NAME OF ORGANIZATION _____

TITLE OF ACTIVITY _____ DAY/DATE OF ACTIVITY _____

BEGINNING DATE _____ ENDING DATE _____

COMMITTEE CHAIRPERSON _____

COMMITTEE MEMBERS: _____

HERE IS A BRIEF EXPLANATION OF THIS ACTIVITY _____

THE PURPOSE OF THIS ACTIVITY _____

PROJECTED EXPENSES:

COMPANY: _____ FOR: _____ \$ _____

COMPANY: _____ FOR: _____ \$ _____

COMPANY: _____ FOR: _____ \$ _____

COMPANY: _____ FOR: _____ \$ _____

INDIVIDUAL COST TO THE STUDENT: \$ _____ OTHER EXPENSES: _____

CONTACT FOR MORE INFORMATION _____ PHONE _____

THIS APPLICATION/REQUEST FORM SHOULD BE SUBMITTED TO THE PRINCIPAL AT LEAST TWO WEEKS PRIOR TO THE EVENT STARTING AND OR ITEMS BEING ORDER.
ALL ORDERS WILL BE PLACED BY THE ADVISOR AND ANY FOLLOW UP THAT IS NEED SHALL BE HANDLE BY THE ADVISOR.

SIGNATURES REQUIRED:

CLASS/ACTIVITY ADVISER: _____

STUDENT TREASURER: _____

APPROVED: ____ NOT APPROVED: ____ REASONS: _____

APPROVAL SIGNATURE:

PRINCIPAL: _____

DATE: _____

COPIES TO THE FOLLOWING PEOPLE: PRINCIPAL, CLASS / ACTIVITY ADVISOR, AND THE BOOKKEEPER.

Building/Equipment Use Form attached _____

Scales Mound School District #211
 (Elementary, Middle School, High School) Activity Fund

Deposit:

Name: _____

Cash/Coin –

Coins _____

Ones _____

Fives _____

Tens _____

Twenties _____

Other _____

Total Cash/Coin _____

.....

Initial Count - (activity fund sponsor)

Total Cash/Coin _____

Total Checks _____

Total Monies collected _____

Sponsor Signature _____

Date _____

.....

Recount – (secretary/activity fund custodian)

Total Cash/Coin _____

Total Checks _____

Total Monies collected _____

Recount Signature _____

Date _____

.....

Checks –

Name

Amount

Total Checks _____

STUDENT		DISCIPLINE NOTICE		DATE	TIME
SUBJECT		GRADE	SCALES MOUND C.U.D. #211 (815) 845-2215	TEACHER	
NOTICE TO PARENTS: 1. The purpose of this report is to inform you of a disciplinary incident involving the student. 2. You are urged to both appreciate the action taken by the teacher and to cooperate with the corrective action initiated today.					
DETENTION HAS BEEN ASSIGNED: M T W T F				DATE(S)	TIMES
O F F E N S E					
A C T I O N					

STUDENT SIGNATURE

WHITE-PARENT'S COPY

YELLOW-TEACHER'S COPY

OFFICE SIGNATURE

PINK-OFFICE COPY

REQUEST FOR THE USE OF
SCALES MOUND CUSD #211 EQUIPMENT

I, _____, agree to assume responsibility for
_____ checked out from Scales Mound CUSD #211.

I agree to pay for repair or replacement cost if the equipment is damaged due to my negligence.

I will return the item to the school office by _____.

Item _____

Identification number _____

Reason for use _____.

Signature of person submitting the request

Date _____

Approval by _____

Date: _____

Extra Duty Report**Name:** _____**Event:** _____ **on** _____
(Date)**Duty Performed:** _____ **Payment:** __________
Superintendent's Signature**Pd:** _____ **Date:** _____

**SCALES MOUND COMMUNITY UNIT SCHOOL
DISTRICT #211
PERMIT TO ATTEND EVENT**

I HEREBY GIVE MY PERMISSION FOR _____ TO
(STUDENT'S NAME)
ATTEND _____ AT _____
(EVENT) (TOWN)
ON _____
(DATE)

IT IS UNDERSTOOD THAT THE CHILD IS STILL UNDER SCHOOL SUPERVISION,
BUT NEITHER THE SCHOOL DISTRICT, NOR THOSE IN CHARGE SHALL BE
HELD RESPONSIBLE IN CASE OF ACCIDENT.

PARENT/GUARDIAN SIGNATURE

- ☐ I WILL BRING A SACK LUNCH/DRINK
- ☐ I WOULD LIKE THE DISTRICT TO PROVIDE A LUNCH/DRINK AT MY CURRENT
LUNCH PRICE
- ☐ PLEASE RETURN BY _____.

ACTIVITY OR FIELD TRIP REQUEST

Activity or Field Trip: _____

Organization: _____

Location: _____

Distance (Round Trip): _____

Date: _____ Time Period: _____

Transportation request form completed and attached.

Cost to District: _____

Sponsor: _____

Briefly state the relevancy of this activity to your content area: _____

Date submitted to Office:

Principal _____ Date _____

Superintendent _____ Date _____

Board of Education _____ Date _____
(Trips over 50 miles)

REQUEST FOR ADDITION TO SCHOOL CALENDAR AND/OR TRANSPORTATION

Instructions: Complete request and forward all copies to the Superintendent's office. Please forward as soon as date is known, especially if a bus is needed.

REQUEST:

EVENT _____

DATE _____

ORGANIZATION _____

BUILDING TO BE USED _____

OR

DESTINATION _____

NUMBER INVOLVED _____ BUS _____

PICK-UP POINT: SCALES MOUND SCHOOL

APPROXIMATE NUMBER MILES _____

TIME DESIRED TO ARRIVE AT DESTINATION _____

DEPARTURE TIME FROM SCALES MOUND _____

RETURN TIME TO SCALES MOUND (APPROX) _____

ADVISORS IN CHARGE _____

APPROVAL:

APPROVED BY _____

APPROVED BY _____

TRANSPORTATION:

DRIVER'S NAME _____

ODOMETER READINGS: _____ BUS # _____

START OF TRIP _____

END OF TRIP _____

TOTAL MILES _____

DRIVER'S HOURS:

TIME LEAVING SCALES MOUND _____

TIME RETURNING TO SCALES MOUND _____

TOTAL DRIVER'S HOURS _____

DRIVER'S SIGNATURE _____

OFFICE:

CHARGE _____

DATE PAID _____ CHECK # _____

DATE ADDED TO CALENDAR _____

***Scales Mound CUSD #211
Maintenance Request Form***

**For all maintenance requests, complete this form and submit it to
your building principal.**

Person Requesting Services: _____

Grade Level: _____ Elementary _____ Junior High _____ High School

Room #: _____

Description of work requested:

Date of Request: _____

Signature of person making the request: _____

Approved by the Principal or administration: _____ ***Yes*** _____ ***No***

Reason not approved:

Maintenance staff completed request on: _____
Date

Signature of maintenance staff who completed the work

INTERNAL SUBSTITUTE REPORT

Name _____

Substituted for _____ on _____
(Date)

Portion of day or number of periods subbed _____.

Payment due \$ _____.

Principal's Signature

Pd. _____ Ck. # _____

Community Relations

Application and Procedures for Use of School Facilities

This application must be approved before a non-school related group is allowed to use school facilities. School organizations, school-sponsored programs, and organizations whose primary purpose is to provide financial assistance to the school are all considered, for the purpose of this application, to be school-related. Use of school facilities for school purposes has precedence over all other uses.

Organization name	Requested school facility
Adult Supervisor from Organization <i>(must be 21 years of age or older)</i>	Phone/email address
Program/Activity	Date(s) and start/end time(s)
Equipment needed	Materials to be brought into facility

1. All non-school related groups must supply adequate supervision to ensure proper care and use of school facilities.

- The non-school related group is responsible to the Board for the use and care of the school facility. All adult supervisors should have cell phones with them at all times.
- Sufficient, competent adult supervision must be provided and the adult supervisor must ensure that no minor is left alone after the activity.
- The adult supervisor will vacate the facility at the scheduled end time. Use of the school facility is not permitted past the agreed end time.
- Only areas of the building that are approved for use in the application may be utilized by the group
- No furniture or equipment may be moved without prior approval from the *administration*
- Signs, displays, or materials may not be attached, nailed, or otherwise affixed to walls.

_____ *Initial here if this is agreeable*

2. All non-school related groups must agree to:

- Indemnify and hold harmless the District and its agents and employees for and from any and all loss including attorneys' fees, damages, expense, and liability arising out of its use of school property.
- Pay any damages to school facilities, furniture, or equipment arising out of its use of school property whether such damage was accidental or deliberate. The cost of damages will be based on the repair or replacement cost, the choice of which is at the School Board's discretion.
- Supply proof of insurance naming and verifying that the group maintains *at least \$500,000 liability insurance* against personal injury and/or property loss:

_____ *Initial here if this is agreeable*

3. Non-school related groups may be charged fees to cover any cost incurred by the District

_____ *Initial here if this is agreeable*